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MASTER SERVICES AGREEMENT

This Master Services Agreement (the "**Agreement**") is entered into as of January 1, 2025 (the "**Effective Date**") between [REDACTED] located at [REDACTED] (" [REDACTED] ") and [REDACTED] ("**Provider**") with its registered office at [REDACTED].

RECITALS

WHEREAS, [REDACTED] and Provider have engaged in negotiations and discussions that have culminated in the formation of the relationship described in this Agreement with respect to the Services to:

Create competitive advantage for [REDACTED] through the Services (as defined below) to achieve best-in-class standards for the provision of Services and sustain and enhance such standards through continuous improvement;

Reduce [REDACTED]' current expenditure on business process outsourcing services by obtaining competitive market prices and cost reductions from Provider through the provision of the Services as provided in this Agreement;

Improve Service Levels (as defined below) through continuous assessment and reviews of all processes and procedures for the performance of the Services, and improve [REDACTED]' overall productivity; and

Provide a prompt and smooth transition of the Services in accordance with the Transition Plan (as defined below) without disruption to [REDACTED]' business.

WHEREAS, Provider desires to provide its skills, experience, and expertise in business process outsourcing Services to [REDACTED]; and

WHEREAS, [REDACTED] desires to retain Provider to provide the Services, subject to the terms and conditions specified below and in accordance with the requirements contained in an applicable Statement of Work.

NOW THEREFORE, in consideration of the foregoing recitals, and the obligations stated below, [REDACTED] and Provider agree as follows:

AGREEMENT**1. DEFINITIONS.**

The following terms shall have the meanings assigned:

- (a) "**Affiliates**" means, (i) for the purposes of [REDACTED], any Person which, directly or indirectly, [REDACTED] or controls, is owned or is controlled by or is under common ownership or control with [REDACTED] and (ii) for purposes of Provider, any Person which, directly or indirectly, [REDACTED] or controls, is owned or is controlled by or is under common ownership or control with Provider; where "**control**" means the power to direct the management or affairs of an entity, and "**ownership**" means the beneficial ownership of greater than fifty percent (50%) of the voting equity securities or other equivalent voting interests of the entity
- (b) "**AI Tools**" means any tool that uses artificial intelligence, including but not limited to machine learning-based tools and generative artificial intelligence tools. [REDACTED] may provide content to Provider for use with the AI Tools ("**Input**") and receive output generated and returned by the AI Tools based on the Input ("**AI Output**"; together with Input, "**AI Content**").
- (c) "**Assigned Agreements**" is defined in Section 8.2.
- (d) "**Change**" means any change with respect to the scope or performance of the Services.

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- (e) **"Charges"** means the amounts payable by [REDACTED] to Provider for Services as set forth in the applicable provisions of each SOW and other applicable provisions of the Agreement.
- (f) **"Claim"** means all claims for Losses asserted by Third Parties.
- (g) **"Confidential Information"** means, as applicable, [REDACTED] Confidential Information and/or Provider Confidential Information.
- (h) **"Consents"** means any notice or consent required to be obtained by, (a) [REDACTED] to (i) transfer or assign any Assigned Agreements to Provider, or (ii) permit Provider to Use any [REDACTED] Software, ("Consents"), and (b) Provider to (x) permit Provider to transfer to [REDACTED] any Third-Party Agreements or (y) permit [REDACTED] to Use any Provider Software or Provider Materials, ("Provider Consents"). [REDACTED] Consents and Provider Consents are collectively referred to as Consents.
- (i) **"Contract Executive"** means an individual from each Party designated in an SOW who from the Effective Date of this Agreement will serve as the primary representative for such Party under this Agreement.
- (j) **"Contract Year"** means each 12-month period starting on the Effective Date and ending the day before the anniversary thereof.
- (k) **"Data Subject"** means an identified or identifiable natural person.
- (l) **"Deliverable(s)"** means all output from Provider's provision of the Services to [REDACTED], including without limitation (i) all Software, hardware and related documentation, manuals that Provider develops, for [REDACTED] pursuant to an SOW, and (ii) any modification or enhancement of, or derivative work based upon, the [REDACTED] Owned Software or [REDACTED] Materials.
- (m) **"Effective Date"** is defined in the preamble to this Agreement.
- (n) **"Initial Term"** is defined in Section 18.1 of this Agreement.
- (o) **"Law(s)"** means any law, ordinance, code, rule, regulation, published standard, judgment, decree, writ, injunction, ruling, order, administrative guidance, treaties, directives, statutes, legislation or other requirements of or enacted by any federal, state, municipal local, territorial or other governmental department, regulatory authority, judicial or administrative body, whether domestic, foreign or international in a relevant jurisdiction, as amended or as newly adopted to replace previously existing laws, as such laws are amended or changed from time to time.
- (p) **"Losses"** means damages, claims, losses, liabilities, charges, actions, suits, proceedings, deficiencies, taxes, interest, penalties, and reasonable costs and expenses (including reasonable attorneys' fees, court costs and expert witness fees).
- (q) **"Party"** means Provider or [REDACTED], and Parties means Provider and [REDACTED].
- (r) **"Person"** means an individual, a corporation, a partnership, an association, a trust or other entity or organization.
- (s) **"Personal Data"** means information that identifies, relates to, describes, is reasonably capable of being associated with, or could reasonably be linked, directly or indirectly, with a Data Subject. "Personal Data" includes personal information and personal data (as those terms are defined in the applicable Data Protection Legislation (defined in Schedule C)), as context requires.
- (t) **"Personal Data Processing"** means any operation or set of operations which is performed on Personal Data or on sets of Personal Data, whether by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure or destruction.

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- (u) **"Personnel"** mean the directors, officers, employees, partners, agents, advisers, independent contractors and subcontractors of a Party (and its Affiliates) or another entity, as applicable; provided that the Personnel of Provider and its Affiliates will not be deemed to be Personnel of [REDACTED] or its Affiliates.
- (v) **"Provider Competitor(s)"** means those companies identified in Schedule H.
- (w) **"Provider Confidential Information"** means (i) Provider's pricing under the Agreement (including, pricing of Third Parties'/subcontractors' engaged by Provider for performing Services), (ii) audit reports provided by Provider under this Agreement, including non-public responses to diligence questionnaires and compliance certificates provided under the Agreement, (iii) Provider's (or its subcontractors') insurance certificates, (iv) details of the manner in which Provider Software as expressly identified in the applicable SOW as Provider Confidential Information is utilized for the performance of Services (except to the extent such information is utilized as part of [REDACTED]' business processes), and (v) Provider Materials furnished by Provider under the applicable SOW and expressly identified in the applicable SOW as Provider Confidential Information, provided, however, UL's disclosure of Provider Software or Provider Materials under Section 12.4 to its sub-licensees will not constitute a violation of the restrictions contained herein. Provider Confidential Information does not include information that: (a) [REDACTED] can demonstrate to have rightfully obtained from a Third Party who had the right to disclose it to [REDACTED] before Provider or its Affiliates, including their employees, service providers, or agents, disclosed it to [REDACTED]; (b) has become publicly known through no wrongful act of [REDACTED]; or (c) [REDACTED] has developed independently and without the use of any Provider Confidential Information, as evidenced by appropriate documentation.
- (x) **"Provider Materials"** means any materials, documentation, manuals, guidelines, business processes, methodologies, database rights, inventions, designs, drawings, or other items licensed or owned by Provider and used by Provider to perform the Services, excluding Provider Software, [REDACTED] Software, [REDACTED] Materials, and Deliverables.
- (y) **"Provider Owned Software"** means any Software owned by Provider or any of its Affiliates.
- (z) **"Provider Software"** means Provider Owned Software and Provider Third-Party Software licensed and used by Provider or any of its Affiliates, subcontractors or other agents to provide the Services.
- (aa) **"Renewal Term"** means any of the renewals authorized by Section 18.1 of this Agreement.
- (bb) **"Service Commencement Date"** means the dates set forth in an SOW pursuant to which Provider is required to complete the Transition Services (if any) and commence performing the Services in accordance with an SOW.
- (cc) **"Service Credit(s)"** are amounts payable for unexcused failures to meet Service Levels, determined in accordance with an SOW.
- (dd) **"Service Levels"** mean the various objective, measurable performance standards identified as such in an SOW.
- (ee) **"Service Locations"** is defined in Section 4.5 of this Agreement.
- (ff) **"Services"** means the services, functions and responsibilities described in Section 3.1 of this Agreement and detailed in the applicable SOW.
- (gg) **"Software"** means any application, operating system, middleware component, tools, utilities or other computer program, in object or source code form as applicable in the circumstances.
- (hh) **"SOW"** means a mutually agreed statement of work, service description, quote, order, or invoice describing the Services to be performed by Provider under this Agreement.

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- (ii) **"Term"** means the term of this Agreement, as described by Article 18.1, below, consisting of the Initial Term and any Renewal Terms.
- (jj) **"Termination Assistance Services"** is defined in Section 18.7.
- (kk) **"Third Party"** means an entity other than Provider and its Affiliates and other than [REDACTED] and its Affiliates.
- (ll) **"Third-Party Agreement"** means any Third Party license agreements, support agreements and other Third Party contract rights utilized by Provider in connection with the performance of the Services.
- (mm) **"Third-Party Software"** means the applications and system Software from time to time owned by Third Parties and licensed to or accessed by [REDACTED] and/or Provider listed in an SOW (as it may be amended from time to time pursuant to this Agreement) and used to provide the Services.
- (nn) **"Transition Plan"** means the plan agreed to by the Parties to effectuate the transition services as set forth in the applicable SOW.
- (oo) **"Transition Services"** means the set of tasks and activities for Provider to complete to transfer Services from [REDACTED], or its designee, to Provider, in accordance with an applicable SOW and Transition Plan.
- (pp) **"[REDACTED] Competitor(s)"** means those companies identified in Schedule G.
- (qq) **"[REDACTED] Confidential Information"** means all non-public information (including the terms of this Agreement), business and financial information, [REDACTED] Data, source code, machine and operator instructions, business methods, business plans, procedures, trade secrets, know-how and other information of every kind that relates to the actual or planned business of [REDACTED] regardless of the manner or medium in which it is furnished to or otherwise obtained by Provider, its Affiliates and its/their Personnel, which will be held in confidence by Provider. Except with respect to financial information and Personal Data, Confidential Information does not include information that: (a) Provider can demonstrate to have rightfully obtained from a Third Party who had the right to disclose it to Provider before [REDACTED] or its Affiliates, including their employees, service providers, or agents, disclosed it to Provider; (b) has become publicly known through no wrongful act of Provider; or (c) Provider has developed independently and without the use of any Confidential Information, as evidenced by appropriate documentation.
- (rr) **"[REDACTED] Data"** means any and all data provided to Provider by or on behalf of [REDACTED], its Affiliates, agents or customers, or data collected, generated, or compiled by Provider in the course of its performance of the Services, including, without limitation, any Personal Data and business and financial information.
- (ss) **"[REDACTED] Indemnitees"** is defined in Section 16.1 of this Agreement.
- (tt) **"[REDACTED] Materials"** means any materials, documentation, manuals, guidelines, business processes, methodologies, database rights, inventions, designs, drawings, Confidential Information or other items owned by [REDACTED] and used by [REDACTED] to support its operations, excluding [REDACTED] Software, Provider Software and Provider Materials.
- (uu) **"[REDACTED] Owned Software"** means the Software owned by [REDACTED] and that is identified in the applicable SOW.
- (vv) **"[REDACTED] Software"** means [REDACTED] Owned Software and Third-Party Software licensed by [REDACTED] and identified in the applicable SOW.
- (ww) **"Use"** means to make, reproduce, copy, distribute, adapt, modify, make derivative works of, perform, display, transmit and otherwise use, and to sublicense any or all of such rights to Third Parties.

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The defined terms used in this Agreement will have the meanings set forth in this Article 1, or if not defined in this Article 1 will have the meaning ascribed to as defined elsewhere in this Agreement, unless the context clearly requires otherwise.

2. AGREEMENT STRUCTURE.

- 2.1 Order of Precedence. All exhibits and schedules are incorporated by reference into this Agreement. The main body of the Agreement, the exhibits and schedules shall be construed consistently, to the extent practicable, to give effect to the entire Agreement. To the extent that any conflict may appear between the main body of the Agreement, on the one hand, and the exhibits and schedules on the other, the Agreement shall prevail over the exhibits and schedules; provided, however, that any specific description of Services in any SOW will supersede any inconsistent general reference in the main body provisions of this Agreement.
- 2.2 Parent Guarantee. As a condition of [REDACTED] entering into this Agreement, [REDACTED], the parent company of Provider, has agreed to enter into the form of parent guarantee attached as Schedule I (Guarantee) simultaneously with the execution of this Agreement.
- 2.3 Affiliate SOWs. At the request of [REDACTED] or a [REDACTED] Affiliate, Provider (or Provider's Affiliate) shall enter into with each applicable [REDACTED] Affiliate, an SOW that incorporates by reference the terms and conditions of this Agreement, except as expressly changed in such SOW (each, an "**Affiliate Agreement**"). No Affiliate Agreement will alter or supersede, or may be construed as altering or superseding, the rights and obligations of [REDACTED] and Provider under this Agreement as between [REDACTED] and Provider. Each [REDACTED] Affiliate shall be solely liable for its obligations that arise under the Affiliate Agreement to which it is a party. [REDACTED] shall have no liability under, or any obligations with respect to, any such Affiliate Agreement. For avoidance of doubt, the following terms in this Agreement, when read as incorporated into any Affiliate Agreement, have the following meanings: (i) each instance of "[REDACTED]" (except as used in this Section 2.3) means "[REDACTED] Affiliate", and "Provider" means "Provider Affiliate" as applicable, and (ii) each instance of the term "Agreement" means "Affiliate Agreement".
- 2.4 Non-Exclusive Agreement. This Agreement is nonexclusive, and [REDACTED] may obtain Services and similar or related services from Third Parties or its own resources. Subject to the terms of this Agreement, Provider shall cooperate with [REDACTED] and its service providers to allow the proper performance of any such services.

3. SERVICES.

- 3.1 Provision of Services. Commencing on the Effective Date, and continuing throughout the Term, Provider shall be responsible for providing to [REDACTED]:
- (a) the services, functions and responsibilities described in an SOW and this Agreement, as may be amended and supplemented from time to time, including any Transition Services or Termination Assistance Services;
 - (b) the services, functions or responsibilities not specifically described in an SOW, but which are inherent in or reasonably related to and necessary for the performance and delivery of the Services described by such SOW and this Agreement, if they are not otherwise expressly excluded by the Parties; and
 - (c) other activities that would ordinarily be performed by Provider as part of its standard offering when acting as the outsourcing vendor of the Services.

4. OPERATION.

- 4.1 Service Standards.
- (a) General. Provider's performance of the Services will be timely and professional, comply with applicable Standard Operating Procedures (as defined below) and meet or exceed (i) the standards of quality, accuracy, completeness, timeliness and efficiency of other companies providing similar services in the industry, (ii) each of the applicable Service

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Levels, and (iii) any timelines or schedules set out in the applicable SOW. If Provider fails to meet any of these performance standards, Provider shall investigate the root causes of the failure, report its findings to [REDACTED] in writing, and use diligent efforts to correct any deficiencies and prevent recurrence. Time is of the essence in Provider's performance of the Services (where timelines are expressly identified), and failure to achieve timely completion of such Services will be deemed a breach of this Agreement by Provider.

- (b) **Standard Operating Procedures.** By the earlier of ninety (90) days after the effective date of each SOW or as otherwise agreed in the SOW, Provider will prepare a set of standard operating procedures in the form and scope specified by [REDACTED] and will deliver documentation of such procedures to [REDACTED], for [REDACTED] approval ("**Standard Operating Procedures**"). The Standard Operating Procedures and any derivatives thereof shall be considered a Deliverable under this Agreement. The Standard Operating Procedures will contain Provider's procedures for performing the Services described in an applicable SOW so that the Services are performed accurately and in a timely manner, and will include all operations manuals, support plans and user guides necessary and sufficient to document such procedures to [REDACTED] reasonable satisfaction. Provider will update the Standard Operating Procedures no less than annually to reflect any changes in the operations or procedures described.
- (c) **[REDACTED] Architecture, Policies and Procedures.** In providing the Services to [REDACTED], Provider must adhere to [REDACTED] standards, guidelines, policies, procedures, information management technical architecture, and [REDACTED] applicable internal controls as they may be modified and communicated in writing to Provider by [REDACTED] from time to time; provided, however, that (a) they are provided to Provider in advance; and (b) if [REDACTED] modifies any of the foregoing in a manner that requires Provider to acquire new hardware, Software or other resources or make such other changes that materially increases Provider's costs above what had been planned and such is not a scheduled update or upgrade to the existing Software or hardware used to provide the Services, the modification will be considered a Change that is subject to Change Control. Provider will not send any global communications to any group of [REDACTED] employees without first submitting all such communications to the [REDACTED] Contract Executive for review and approval at least five (5) business days prior to the planned release date. No communication may be sent without [REDACTED] Contract Executive's explicit written consent.

4.2 Review of Service Performance.

- (a) **Reports.** Provider shall periodically report to [REDACTED] on its compliance with the Standard Operating Procedures. Provider will provide to [REDACTED], in the form approved by [REDACTED] and in accordance with the schedule determined by [REDACTED], the online, graphical performance, utilization and status reports specified in an SOW. Provider will also provide [REDACTED] with read-only access to such of its operational and management tools as [REDACTED] may reasonably request to monitor and manage the performance of Services.
- (b) **Service Level Adjustment.** [REDACTED] and Provider will review the Service Levels for the preceding twelve (12) months during the last calendar quarter of each Contract Year. The Parties will adjust the Service Levels, for the following Contract Year, that (i) require periodic adjustment pursuant to the applicable SOW to reflect any improved performance capabilities associated with advances in the technology and methods used to perform the Services, or (ii) are no longer appropriate because of an increase, decrease or change to the Services. Such adjustments are in addition to any others that may be agreed by the Parties or required or permitted by the applicable SOW.
- (c) **Service Credits.** The Parties will formally review Provider's performance against Service Level commitments at least quarterly, or at the intervals specified in the applicable SOW, and at any time upon [REDACTED] request. If Provider fails to provide the Services in accordance with the applicable Service Levels, [REDACTED] will receive the Service

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Credits set forth in the applicable SOW. The Service Credits will not limit or preclude [REDACTED] right to seek other remedies to which it may be entitled hereunder; and, provided, that the amount of any damages that [REDACTED] is entitled to receive for such failure will be offset by the amount of Service Credits paid to [REDACTED] by Provider. No Service Credits will be payable for failures excused under Section 4.4 or attributable to Force Majeure Events (excluding any such failure attributable to failures to (i) use reasonable precautions or (ii) to perform disaster recovery obligations).

- 4.3 Acceptance of Deliverables. [REDACTED] will designate one or more individuals ("**Acceptor**") to (i) accept or reject Deliverables (in whole or in part) and (ii) communicate [REDACTED] comments, objections or responses concerning any Deliverable, testing, review or prototype demonstration. The following procedures will apply upon delivery of a Deliverable for which acceptance criteria or acceptance tests are specified in an SOW or otherwise agreed to in writing:
- (a) Completion criteria for Deliverables will be mutually developed and agreed to in an SOW, and in any event, at least thirty (30) days before the date of the relevant milestone. To the extent practicable, acceptance criteria will be objective, measurable and repeatable tests that are based upon [REDACTED] anticipated production use of the Deliverables.
 - (b) In the case of components of a Deliverable consisting of documentation, the Acceptor will review the Deliverable and make any comments, objection or responses prior to the expiration of the applicable Review Period. In the case of hardware, Software or infrastructure components of a Deliverable, Provider will conduct the acceptance tests as prescribed in the relevant documents (approved by [REDACTED]) after giving [REDACTED] appropriate notice and an opportunity to observe the acceptance tests. Provider will provide the Acceptor with any documentation or other record of the results of such acceptance tests.
 - (c) The Acceptor will review the Deliverables consisting of documentation and the record or results of acceptance tests for other Deliverables within the periods after receipt specified in the relevant documents ("**Review Periods**"), or, if no such Review Period has been specified, within thirty (30) days after receipt. Prior to the end of the relevant Review Period, the Acceptor will deliver to Provider either (i) written acceptance of the relevant Deliverable or (ii) a written response specifying in detail how the Deliverable fails to conform to the applicable acceptance criteria. Deliverables will not be deemed accepted based upon [REDACTED] payment, but only unless and until [REDACTED] formally accepts the Deliverable in writing or uses or approves its use in its production environment (other than on a qualified, conditional or other limited basis).
 - (d) In the event the Acceptor notifies Provider in writing that all or any part of a Deliverable is unacceptable, Provider will modify and return to [REDACTED] the entire Deliverable for review of the modified portions within five (5) business days (or such longer or shorter period as may be agreed for a particular SOW). If and to the extent that any deficiencies remain, these procedures may be repeated as necessary to correct the deficiencies that remain (or others revealed by further testing or review after corrective work). Upon review and approval of the corrected deliverable by the Acceptor, the Deliverable will be considered accepted; provided however that such acceptance may be revoked, at any time prior to completion of the last milestone or related Deliverable so identified in an SOW, if testing of a later related Deliverable reveals deficiencies in a previously accepted Deliverable.
- 4.4 Excused Performance. In addition to the excused performance contemplated under the Force Majeure provision of this Agreement, Provider will be excused from failures to perform the impacted Services or to meet or exceed the Service Levels to the extent that (i) [REDACTED] fails to perform the retained services identified in the SOW or other provisions of this Agreement, (ii) [REDACTED] provides written instructions to Provider that Provider reasonably follows and which, when followed, prevent the Provider from performing the Services in accordance with the terms of this Agreement, (iii) there are defects in [REDACTED] Software and systems that are

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owned, managed and/ or provided by [REDACTED] that prevent such [REDACTED] Software or systems from operating in accordance with their documentation, and (iv) such failure or defects under (i) through (iii) above or other acts or omissions of [REDACTED] or its agents (not undertaken at Provider's direction or with Provider's consent) directly causes Provider's failure to perform; provided, however, that Provider must (a) give [REDACTED] prompt notice of [REDACTED] failure to perform such retained services resulting in such performance failure, (b) use its reasonable efforts to continue to perform despite [REDACTED] failure to perform retained services and (c) use its reasonable efforts to mitigate the adverse consequences of [REDACTED] failure to perform such retained services.

- 4.5 Service Locations. The Services will be provided to [REDACTED] from the service locations as specified in the SOW, and any other location for which Provider has received [REDACTED] approval ("**Service Locations**"). Provider may not relocate operations from its Service Locations or other approved facilities without [REDACTED] consent, which may be conditioned upon (i) approval of a transition or migration plan, (ii) reasonable assurances that relocation will be accomplished without any interruption or degradation of the Services, or any additional cost to [REDACTED]; and (iii) mutually agreed reductions in Charges for affected Services.
- 4.6 Subcontracts. Except as otherwise provided below, Provider may not delegate performance of any of its duties, obligations and responsibilities hereunder to any of its Affiliates or to any subcontractor without [REDACTED] prior written approval in each instance. Provider shall require subcontractor (including individuals engaged as subcontractors) to enter into nondisclosure agreements consistent with the terms of this Agreement either with [REDACTED] or for [REDACTED] express benefit. Provider shall remain fully responsible for all Services delegated to subcontractor and for the acts, errors and omissions of subcontractor. All subcontracts shall permit assignment to [REDACTED] upon any early termination of this Agreement, and contain provisions consistent with, and at least as stringent as, the provisions of this Agreement concerning audit, confidentiality, information security, intellectual property, use of [REDACTED] facilities, and replacement of Personnel.
- 4.7 Consents. Provider will appropriately identify, define the scope and nature of, obtain, maintain and comply with all necessary Provider Consents. [REDACTED] will cooperate with Provider in Provider's obtaining and maintaining the Provider Consents. Provider will pay all costs and expenses with respect to identifying, defining the scope of, obtaining, maintaining and complying with all Provider Consents, and such identification, definition of the scope of, acquisition, maintenance, and compliance will be at no additional charge to [REDACTED], unless otherwise agreed in the applicable SOW. [REDACTED] will appropriately identify, define the scope and nature of, obtain, maintain and comply with all necessary [REDACTED] Consents, at its own expense. Provider will cooperate with [REDACTED] in obtaining and maintaining the [REDACTED] Consents.
- 4.8 Currency of Technology. Provider will cause the Services to evolve and to be modified, enhanced, supplemented and replaced as necessary, and as approved by [REDACTED], for the Services to keep pace with technological advances and advances in the methods of delivering services at no additional charge to [REDACTED], unless otherwise agreed in the applicable SOW. In particular, and without limiting the generality of the preceding sentence, Provider Software and Provider's hardware, facilities, tools, utilities, methodologies, processes and procedures for performing Services will be maintained, supported, upgraded and enhanced consistently with Provider's own business and the support of its customers generally; Provider will keep Provider Software on current supported releases; Provider will keep material hardware refreshed, at reasonable intervals, consistent with good industry practice and as required to achieve agreed performance standards. Third Party tools and utilities used to perform Services will be maintained on current, or near-current, supported releases. Adjustments in Services in accordance with this Section will be deemed to be included within the scope of the Services to the same extent and in the same manner as if expressly described in this Agreement.
- 4.9 Continuous Improvement. Provider shall deliver continuous improvement to the Services during the Term and during the term of any applicable SOW. Provider may use AI Tools, other

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technologies and process improvements ("**Services Improvements**") to optimize the delivery of the Services. Services Improvements must be disclosed to [REDACTED] and approved by [REDACTED] in writing. As between the Parties, [REDACTED] or [REDACTED] all right, title, and interest in and to the AI Content, including all intellectual property and proprietary rights therein. If and to the extent that Provider has or acquires any intellectual property or proprietary rights in the AI Content, Provider hereby irrevocably and unconditionally assigns, and agrees to assign, all such rights to [REDACTED] for no additional consideration. [REDACTED] authorizes Provider to process the Input via the AI Tools solely for the purpose of providing the Services. Provider shall take all steps necessary to process AI Content securely and in accordance with applicable laws and regulations and the Agreement. Other than to provide the Services, neither Provider nor any other Third Party may access, use, or disclose the AI Content for any purpose. Provider agrees that (i) the Services Improvements are, and will continue to be, developed, provided, and maintained in a professional and workmanlike manner, and in accordance with Provider's specifications and all applicable industry standards; (ii) the AI Tools shall conform with [REDACTED] artificial intelligence usage policies, as such policies may be made available to Provider from time to time; (iii) the Services Improvements comply with all applicable laws, rules, and regulations; (iv) Provider has obtained and will obtain all necessary consents, assignments, and agreements required to use the Services Improvements; and (v) to the extent Input is not provided by [REDACTED], the Services Improvements, and the collection and use of the data used to train the AI Tools, does not infringe or misappropriate the rights of any Third Party. If applicable to the scope of Services, Provider will perform any and all transformation activities identified in any applicable SOW, such as enabling tools and technologies and robotic process automations. Provider shall meet or exceed any such transformation commitments in accordance with the provisions of the applicable SOW.

- 4.10 Business Continuity and Disaster Recovery Program. Provider will develop, implement and maintain a business continuity and disaster recovery program as specified in the SOW, which addresses mitigation measures to avoid business disruptions and disasters, including epidemics or pandemics.
- 4.11 (a) Step-In. Notwithstanding any other provision of this Agreement, [REDACTED] may, by notice in writing to Provider ("**Step-in Notice**"), either itself or by a designee (the "**Step-in Party**"), take over provision of the Services if: (i) there is an a Force Majeure Event that is reasonably likely to cause a material adverse impact on the Services provided to [REDACTED] Services under this Agreement; or (ii) [REDACTED] Services has the right to provide a notice of termination under Section 18.3 of the Agreement. In any event, [REDACTED] must exercise its step-in right in good faith and step-in shall be limited to a maximum duration of ninety (90) days or such other time period as may be agreed by the Parties ("Step-in Period"). The Step-In Notice must specify in reasonable detail: (a) the Step-in Party's intention to step-in; (b) an explanation for why this action has been determined to be necessary; (c) the effective date of the step-in; (d) the expected duration of the step-in; and (e) the affected Services. If [REDACTED] exercises its step-in rights pursuant to this Section, Provider shall: (1) provide the Step-In Party with control over the performance of the affected Services as soon as practicable (provided that [REDACTED] or its designee shall keep Provider informed and reasonably included in, the actions taken by them, in order to assist the Provider to resume providing the Services after the Step-In Period); (2) make reasonable efforts to make available to the Step-in Party the Provider resources reasonably required for the performance of the Services; and (3) provide to the Step-in Party such other assistance as is reasonably required to perform the Services; provided that if Provider is required to provide any access to its confidential or proprietary information to a Third Party during the Step-in Period, then such access will be subject to such Third Party's compliance with a mutually agreeable confidentiality agreement with industry standard terms and conditions (provided that Provider Software and Provider Materials shall be subject to Section 12.4 of this Agreement). If [REDACTED] exercises its step-in rights for cause, fees for the affected Services subject to the Step-in Notice shall be waived by Provider during the period of the step-in. During the Step-in Period, Provider shall not be liable for the acts or omissions of [REDACTED] or its designees in providing the affected Services, and Provider shall be excused from its obligations if any acts or omissions

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of [REDACTED] or its designee during the Step-in period prevent Provider from providing any other part of the non-affected Services.

(b) Step-Out: Provider shall immediately notify [REDACTED] upon being ready to resume the full performance of the Services together with such supporting information, documentation and assurances as [REDACTED] may reasonably request and require of Provider to satisfy itself that Provider is ready to recommence performance of Services. Upon the later of [REDACTED] Solution's determination that Provider is ready to recommence performance of the Services and the expiry of Step-In Period, [REDACTED] shall deliver a written notice ("Step-out Notice") to the Provider, specifying in reasonable detail (i) the action it has taken in exercising the step-in rights (to the extent [REDACTED] has not previously provided notice of same); and (ii) the date on which [REDACTED] will require Provider to resume the full performance of the Services ("Step-out Date"), which were or are subject to the step-in actions. Following [REDACTED] Solution's notice to Provider of the Step-out Date, Provider shall recommence performance of the Services in accordance with the requirements of the Agreement. If in the case of the expiry of the Step-in Period, Provider is unable to recommence performance of the Services, then [REDACTED] shall be entitled to exercise all of its rights and remedies, without further delay or cure periods.

5. TRANSITION SERVICES AND SERVICE COMMENCEMENT DATES.

5.1 Transition Services. Provider will perform or cause its subcontractors to perform the Transition Services to in accordance with the Transition Plan and the SOW on or before the Service Commencement Date and other transition milestone dates (each, a "**Transition Milestone Date**") set forth in the SOW and Transition Plan. The Transition Services will be performed in accordance with the SOW and Transition Plan in a reasonable manner intended to minimize any adverse impact on [REDACTED] business and without causing a material disruption to [REDACTED] business or operations. In the event Provider fails to meet any Transition Milestone Date, or fails to provide a critical Deliverable by the applicable Transition Milestone Date, [REDACTED] shall be entitled to hold back a portion of the Charges from payment to Provider, or a Provider will provide a payment credit as applicable (the "**Holdback Amount**") as identified in the SOW or Transition Plan. In the event Provider is responsible for an unexcused failure of more than thirty (30) days (or such other mutually agreed time-period) to meet any applicable Service Commencement Date, such failure will constitute a material breach of this Agreement. If a Force Majeure Event, an event excusing Provider's performance under Section 4.4, or action or inaction of [REDACTED] (other than action or inaction undertaken at Provider's direction or with its consent) prevents or delays a Service Commencement Date or Transition Milestone Date, Provider's performance will be excused for the period of the delay caused by the Force Majeure Event or [REDACTED]. Provider will designate in the SOW or an attachment thereto an individual for each of [REDACTED] facilities and functions being transitioned who will be responsible for managing and implementing the Transition Services (the "**Transition Manager**"). Until the Transition Services have been completed, such Transition Manager will review with an authorized representative of [REDACTED] the status of the Transition Services as often as may be reasonably requested by such authorized representative of [REDACTED].

5.2 Extension of Service Commencement Dates/Transition Milestone Dates. The following terms will apply to an extension of a Service Commencement Date/Transition Milestone Dates:

- (a) Upon notice from [REDACTED] that [REDACTED] desires Provider to delay a Service Commencement Date/Transition Milestone Date, which delay shall not exceed 45 days from the scheduled Service Commencement Date or Transition Milestone Date, Provider will delay the Service Commencement Date/Transition Milestone Date for the applicable period of time [REDACTED] has requested; provided, however, any delays greater than 45 days shall be subject to Change Control. For purposes of and subject to this Section 5.2, Provider cannot deny [REDACTED] request to delay the Service Commencement Date.
- (b) If a Service Commencement Date is extended for more than sixty (60) days as a result of delays caused by Provider or its subcontractors (except due to excused failures under as set forth under Section 4.4), (i) Provider will, on demand, reimburse [REDACTED] for any verifiable direct costs or expenses incurred by [REDACTED] as a result of such delay; and

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- (ii) [REDACTED] may terminate this Agreement for cause in accordance with the provisions of this Agreement. If a Service Commencement Date/Transition Milestone Date is extended or delayed by an action or inaction of [REDACTED] (other than action or inaction undertaken at Provider's direction or with its consent) or is extended due to an excuse event under Section 4.4, the Parties will meet and discuss any additional costs in accordance with Change Control.
- (c) If either Party incurs costs in connection with the extension of the transition schedule for which the other Party is responsible pursuant to this Section 5.2, the Party incurring the costs will be obligated to use all commercially reasonable efforts to minimize such costs.

6. CHARGES AND PAYMENT.

- 6.1 Invoices for Services. Provider will invoice [REDACTED] monthly in arrears for Provider's Charges or as otherwise agreed in an SOW. Each invoice will separately state Provider's Charges as well as reimbursable expenses in such detail as each SOW requires, or as [REDACTED] may reasonably request. Invoices for Services must be submitted, if at all, within thirty (30) days after the end of the month in which they were performed, or within thirty (30) days after completion of the relevant delivery, milestone, billing date or other billing event. Notwithstanding the foregoing, if Provider fails to submit an invoice for Services within ninety (90) days after the end of the month in which they were performed, or within ninety (90) days after completion of the relevant delivery, milestone, billing date or other billing event, then [REDACTED] payment obligations shall be excused.
- 6.2 Charges All-Inclusive. Provider's Charges are all-inclusive. Payment of the Charges specified in an SOW constitutes full payment for the Services, including provision of all hardware, Software, facilities, Personnel and other resources required to perform the Services. Unless otherwise expressly agreed in writing, [REDACTED] shall have no responsibility to pay or reimburse any other charge, expense or amount.
- 6.3 Payment. [REDACTED] shall pay all undisputed amounts set forth on Provider's invoices, in US dollars, within forty-five (45) days after receiving Provider's invoice.
- 6.4 Proration. All periodic Charges are to be computed monthly, and will be prorated for any partial month, unless specifically stated otherwise in this Agreement. Any charges payable to Third Parties for periods before commencement or after termination or expiration of the Term shall be prorated as of the Effective Date or date of termination or expiration, as appropriate.
- 6.5 Disputed Amounts. [REDACTED] may withhold payment of invoiced amounts that [REDACTED] disputes in good faith which dispute shall be notified to Provider within sixty (60) days from the date of receipt of invoice by [REDACTED], or otherwise withhold or set off amounts otherwise owed to [REDACTED], pending resolution of the matter.
- 6.6 Taxes. The Charges are inclusive of all taxes, assessments, fees, business license and other governmental charges of any kind but excludes any sales tax, use tax, valued added tax or any other similar taxes that Provider is obligated to charge [REDACTED] under applicable Law (collectively, "**taxes**") that may be imposed upon the Services, any amount paid to Provider hereunder, or this Agreement. No other taxes shall be due and payable by [REDACTED] (or its affiliates) with respect to any payment for Services provided under this Agreement or any separate SOW, and [REDACTED] is under no obligation to pay or reimburse Provider for any amount of taxes payable with respect to the Services. Provider shall not be entitled to gross up charges to offset any tax assessed on Provider or its subcontractor. Neither Party shall have any obligation for any tax upon the other Party's real, personal or intangible property, or upon the other Party's net income. Provider represents and warrants that it is an independent contractor for purposes of federal, state, and local employment taxes. Provider agrees that [REDACTED] is not responsible to collect or withhold any such taxes, including income tax withholding and social security contributions, for Provider. Any and all taxes, interest or penalties, other than set forth in the first sentence of this Section, including any federal, state, or local withholding or employment taxes, imposed, assessed, or levied as a result of this Agreement shall be paid or withheld by Provider.

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- 6.7 Reimbursable Expenses. If, when and to the extent that [REDACTED] may agree in writing to pay or reimburse any pre-approved expenses, Provider shall (i) provide such documentation and supporting information as [REDACTED] may reasonably request and (ii) comply with applicable travel, expense and other policies specified by [REDACTED]. [REDACTED] shall have no obligation to pay any overhead allocation, administrative charge or other markup upon any reimbursed expense. If, when and to the extent that the SOWs may call for Provider to pass through to [REDACTED] any costs paid to Third Parties, then [REDACTED] shall review the Third Party's invoice and performance, approve or disapprove the invoice, and promptly transmit the invoice to Provider for payment (insofar as approved) in sufficient time for Provider to pay the invoice in a timely manner.
- 6.8 Benchmarking. [REDACTED] may measure the quality and efficiency of some or all Services using an independent benchmarking firm retained by [REDACTED] ("**Benchmarker**") in accordance with terms and conditions set forth in Exhibit 19 of the SOW.
- 6.9 Annual fee increases (if any) that Provider may be entitled to shall be set forth in the applicable SOW.

7. **CONTRACT MANAGEMENT.**

- 7.1 Contract Executives. Each Party's Contract Executive has overall responsibility for communications and has the authority to act for the Contract Executive's Party in connection with all aspects of this Agreement, including management, supervision and direction of the Party's performance, but any written notice, demand or other communication in respect of matters other than the day-to-day performance of the Services shall be addressed to the person or persons specified in the Notice provision. The Contract Executive may upon notice to the other Party's Contract Executive, delegate such of their responsibilities to other Personnel as such Party's Contract Executive deems appropriate.
- 7.2 Governance. The Parties will govern their relationship in accordance with the governance model described in Schedule D (Governance Model) and any other governance provisions set forth in each SOW with respect to such SOW. Each Party will appoint duly qualified employees to represent the Party in the applicable governance positions and cause its representatives to devote the time necessary to meet their respective responsibilities and meet regularly.
- 7.3 Change Control. [REDACTED] or Provider may propose Changes, including any Changes occasioned by an acquisition or divestiture by or of [REDACTED]. All such Changes will be implemented pursuant to the procedures set forth in Schedule E (Change Control).
- 7.4 Equitable Adjustment. In the event of any extraordinary change in [REDACTED] business because of acquisitions, divestitures, mergers, or other material changes in circumstances that increase or decrease volumes of Services above or below anticipated baselines, measured on an annual basis, then upon [REDACTED] request, Provider's Charges for the affected Services shall be equitably adjusted to reflect the net increase or decrease in Provider's aggregate costs of performing the Services that are caused by the extraordinary change (excluding increases or decreases attributable to Provider's performance). Any such extraordinary change shall be processed in accordance with Change Control.
- 7.5 Force Majeure. Neither Party shall be liable for any default or delay in the performance of its obligations if and to the extent such default or delay is caused by any of the following (each, a "**Force Majeure Event**"):
 - (a) fire, flood, earthquake, elements of nature or acts of God, acts of war, terrorism, riots, civil disorders, rebellions or revolutions; interruption of telecommunications service; pandemics, epidemics (excluding COVID-19) or any other similar cause beyond the reasonable control of the affected Party; and
 - (b) could not have been prevented by reasonable precautions and safeguards or execution of a disaster recovery plan and cannot reasonably be circumvented by the non-performing Party using alternate sources, work-around plans or other means.

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If a Force Majeure Event interrupts performance of Services, Provider shall make all reasonable efforts to restore performance of the Services and Provider shall pay any additional cost necessary to do so. If a Force Majeure Event or disaster requires Provider to allocate limited resources among customers, performance of Services for [REDACTED] shall enjoy a priority at least equal to any other customer. If Provider is unable substantially to restore Service within seven (7) days after the Force Majeure Event, then [REDACTED] may obtain substitute service from an alternate source, at Provider's expense (provided such amounts are limited to 150% of Provider's Charges for a period of four (4) months for the affected Services), provided [REDACTED] continues to pay Provider's normal Charges. The foregoing remedies are in addition to all other remedies, and do not excuse Provider's obligation to provide disaster recovery services (to the extent contemplated by an SOW).

8. MANAGED AND ASSIGNED AGREEMENTS.

- 8.1 Managed Agreements. If applicable, Provider shall manage, administer and maintain agreements identified as "Managed Agreements" in an SOW ("**Managed Agreements**"). Provider will provide [REDACTED] with reasonable notice of any option, renewal, termination or cancellation dates and fees with respect to the Managed Agreements.
- 8.2 Assigned Agreements. If applicable, Provider will assume all responsibility for agreements identified as "Assigned Agreements" in an SOW ("**Assigned Agreements**").
- (a) Charges relating to Assigned Agreements will be pro-rated as of the relevant date of commencement of the Services related to such Assigned Agreement or the date of assignment, as appropriate. Provider will be solely responsible for paying all charges under such Assigned Agreements that may become payable after such date. Provider will pay the invoices submitted by Third Parties in connection with the Assigned Agreements and will be responsible for any late fees incurred with respect to such Third-Party invoices.
- (b) Provider will consult with [REDACTED] prior to taking any action to renew, modify, terminate or cancel, or request or grant any consents or waivers under any Assigned Agreement. Any modification, termination or cancellation fees or charges imposed upon [REDACTED] in connection with any modification, termination or cancellation of, or consent or waiver under, the Assigned Agreements will be paid by Provider.
- 8.3 Breach of Agreements. If applicable, Provider will promptly notify [REDACTED] of any breach, misuse or fraud in connection with, any Managed Agreements or Assigned Agreements that Provider knows occurred or reasonably should know has occurred. Provider will cooperate with [REDACTED] to prevent or stay any such breach, misuse or fraud.
- (a) Provider will pay all amounts due for any liquidated damages, late charges or other similar charges (including amounts due to a Third Party) as a result of (i) Provider's non-performance or breach of its obligations under the Assigned Agreements or (ii) Provider's breach of its assumed obligations with respect to the Managed Agreements, or (iii) breaches of Managed Agreements attributable to Provider's acts or omissions.
- (b) [REDACTED] will reimburse Provider for any liquidated damages, late charges or other similar charges incurred by Provider for any non-performance or breach of [REDACTED]' obligations under the Managed and Assigned Agreements that are the result of an act or omission by [REDACTED] (excluding acts or omissions undertaken at Provider's direction or with Provider's consent).
- 8.4 Improved Terms. If applicable, Provider will use its commercially reasonable efforts to:
- (a) introduce service levels which reflect industry best practices for services provided under the Managed Agreements and Assigned Agreements, respectively, upon renewal of any such Managed Agreements and Assigned Agreements; and
- (b) effect savings, pricing reductions and improved services in all Managed Agreements as soon as possible by renegotiation and using its purchasing power to obtain discounts, improved services, improved service levels and better overall pricing.

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9. RESPONSIBILITIES.

- 9.1 General. References to [REDACTED]' responsibilities in the Agreement or an SOW (other than [REDACTED]' promise to pay for the Services procured thereunder), are intended solely for purposes of indicating what is not Provider's responsibility and will not in any circumstance constitute grounds for a claim of breach of such SOW by [REDACTED], provided that Provider shall be entitled to seek relief under Section 4.4 (if applicable) or seek payment of any additional charges (if applicable) through Change Control under Section 7.3.
- 9.2 Third-Party Software. Subject to Section 4.7 of this Agreement, [REDACTED] shall make available to Provider, for the sole purpose of providing the Services, [REDACTED] Third-Party Software used by [REDACTED] that is identified in an SOW for use by Provider. If for any reason [REDACTED] is unable to obtain any required Consents for [REDACTED] Third-Party Software (as set forth in Section 4.7), then the Parties will consult and cooperate concerning alternative arrangements to provide access to, or use of, the [REDACTED] Third-Party Software, or if appropriate, substitute Software with substantially equivalent or superior functionality. Provider will not use any Third-Party Software in performance of Services unless the license and other contracts therefor are transferable to [REDACTED], or [REDACTED] approves in writing. [REDACTED] may condition its approval upon assurances that the Third-Party Software is transferable, or available to [REDACTED] upon commercially reasonable terms.
- 9.3 Provider Use of [REDACTED] Facilities. If an SOW provides that [REDACTED] will provide Provider with use of [REDACTED] facilities to perform the Services, [REDACTED] will provide, at no charge to Provider, regular use of reasonable furnished office space, related utilities and janitorial service at such [REDACTED] facilities. Provider, its employees and subcontractors shall comply with [REDACTED]' policies and procedures governing access to and use of [REDACTED] facilities. Provider shall be responsible for its own office supplies, telecommunications service, photocopying, administrative support and other costs associated with occupation of [REDACTED] facilities. Provider shall refrain from any nuisance or waste, and, when the Agreement expires or terminates, return the facilities to [REDACTED] in the condition received, subject to normal wear and tear. Provider shall not make any alteration or improvement to [REDACTED] facilities without [REDACTED]' prior written consent, which may be given or withheld in [REDACTED]' sole discretion. Provider acquires no right, title, leasehold or other interest in [REDACTED] facilities. Provider's permitted use of [REDACTED] facilities is a license, revocable by [REDACTED] at any time.

10. PERSONNEL.

- 10.1 Personnel Hiring. If any [REDACTED] Personnel are hired by Provider, the terms shall be set forth in Schedule F (Personnel Hiring).
- 10.2 Provider Personnel.
- (a) Provider will appoint a sufficient number of Personnel to the staff performing the Services ("**Contract Staff**") so that the Services are provided in a proper and timely manner in accordance with good industry practices. Only individuals with appropriate education, credentials and experience and with suitable training and qualifications to perform the Services may be appointed to the Contract Staff. Except as otherwise approved by [REDACTED] in its sole discretion, Contract Staff may only provide Services that support [REDACTED]' operations and will not, during such time, provide services for other Provider customers. Provider shall maintain a current list of Contract Staff. Provider shall notify [REDACTED] as soon as possible after assigning a new member of the Contract Staff or dismissing or reassigning any member of the Contract Staff. Contract Staff must first introduce themselves as employees of the Provider but may indicate that Provider has been retained [REDACTED] to provide the Services. Contract Staff may not introduce themselves as [REDACTED] employees.
 - (b) Provider warrants that all Contract Staff assigned to perform any of Provider's obligations hereunder are employees of Provider or its Affiliates and possess the necessary qualifications, education, and skills to perform the Services assigned to each specific

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Contract Staff. Provider warrants that all Contract Staff are legally qualified to work and receive compensation in the country where they are employed, and that Provider's assignment of all Contract Staff complies with all applicable Laws. Provider shall, at its sole cost and expense and subject to applicable Laws, maintain a program to perform: (i) a pre-assignment seven (7) year criminal background check, and (ii) form I-9 employment verification for United States citizens. Provider will ensure that all Contract Staff have successfully complied with such program and are qualified to perform the Services.

- (c) Provider agrees to provide [REDACTED] such other information regarding the qualifications of such proposed Contract Staff which [REDACTED] may reasonably request (at no additional cost to [REDACTED]), and no Contract Staff shall be assigned by Provider to perform any of its obligations or the Services under this Agreement or an applicable SOW without the prior written approval of [REDACTED], which approval shall not be unreasonably withheld. In addition, Provider agrees that it will comply with all legally required pre-employment obligations for all Contract Staff prior to their assignment to perform Services under an SOW, including ascertaining that each individual Contract Staff is authorized to work in the country of their assignment without any sponsorship or assistance from [REDACTED]. Provider shall properly complete and update I-9 forms for all Contract Staff working in the United States.

- 10.3 Key Provider Personnel. Provider acknowledges that the Personnel serving as Provider Contract Executive and other key positions identified in an SOW or mutually agreed with [REDACTED] from time-to-time ("**Key Provider Personnel**") are critical to the provision of Services. Replacements for Personnel filling Key Provider Personnel positions shall be subject to [REDACTED]' prior approval, following an interview and review of resumes. Provider will not, for a period of at least one (1) year after the last day that the individual was one of the Key Provider Personnel, assign that individual to perform services for any [REDACTED] Competitor, without [REDACTED]' prior consent, which [REDACTED] may give or withhold in its sole but reasonable discretion.

- 10.4 Removal of Provider Personnel. If [REDACTED] gives Provider notice that the continued assignment of any individual to the performance of Services is not in reasonably satisfactory to [REDACTED], then following consultation between the Parties, if the issues are not resolved to [REDACTED]' reasonable satisfaction, Provider shall remove the affected individual from [REDACTED]' account (but no such removal shall be deemed to require Provider to terminate any individual's employment or take other disciplinary action).

11. AUDIT.

- 11.1 Audit Procedures. Provider shall maintain complete and accurate records of the performance of Services, Charges and [REDACTED]-approved pass-through expenses in accordance with good industry practice and generally accepted accounting principles, consistently applied. Upon request with twenty (20) days' prior written notice, at reasonable times during the term, once in an year, [REDACTED] and its auditors (who shall not be Provider Competitors) shall have access to [REDACTED]' data, and to Provider's facilities, Personnel, equipment and records concerning the Charges, Services, and Provider's performance in order to audit Provider's practices and procedures; charges; general, internal and other controls; security practices; disaster recovery procedures and tests; Service Level performance, and any other matters pertinent to [REDACTED] (such as regulatory requirements and compliance). [REDACTED] and its auditors shall have no access to Provider's internal cost data (except to the extent costs may be reimbursable), employment contracts, margins or other internal data of Provider, or other Provider clients, or any subcontractor of Provider. [REDACTED]' auditors shall observe such procedures (including Provider's security, safety and other site-specific policies (including information security policies)) while conducting audits and enter into such nondisclosure agreements as may be appropriate to protect Provider's proprietary information, and that of its clients. [REDACTED]' audit rights shall survive expiration or termination of this Agreement for a period of one (1) year. During such survival period, Provider will take commercially reasonable efforts to provide access

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to such Provider Personnel as requested by [REDACTED] to cooperate with any audit requirements of [REDACTED] in accordance with this provision.

- 11.2 Certain Certifications. Upon request, Provider Contract Executive will provide such factual Provider issued certifications, as [REDACTED] or its auditors may reasonably request (e.g., concerning the accuracy of Charges, compliance with applicable [REDACTED] or Provider ethics and other policies, reporting of incidents reportable under those policies) in connection with [REDACTED]' audits or certifications required to be given by [REDACTED]' auditors or executives.
- 11.3 Audit Adjustments. If an audit reveals that Provider has overcharged [REDACTED] for Services, Provider shall reimburse [REDACTED] for the overpayment and if the overcharge is more than five percent (5%) of the actual charge, then reasonable cost of the audit (not to exceed USD Twenty-Five Thousand for each audited location), within thirty (30) days after [REDACTED] written request (which shall include relevant portions of the auditor's report). Any audits conducted pursuant to this Article shall otherwise be at [REDACTED] expense.
- 11.4 Provider's Audits. Provider shall implement internal controls and procedures for the Services as described in the applicable SOW. Provider shall provide [REDACTED] with the results of any internal or external audits related to the following: an annual service auditor's report on controls in place and their operating effectiveness, compliant with SSAE 18, ISAE 3402, and SOC 1 and 2 Type II audits, which shall cover the controls in place for the Services provided to [REDACTED]. The Provider shall also conduct an annual ISO 27001 audit or a similar security audit, which shall cover the Services provided to [REDACTED]. [REDACTED] may request, and Provider shall deliver to [REDACTED], copies of the following enterprise-wide reports and certificates up to once a year: (i) SSAE 18/ISAE 3402 Type II Report, (ii) SOC 2 Type II Report, and (iii) an ISO 27001 certificate. The Provider must inform [REDACTED] of any breaches or weaknesses found in its internal audits or service auditor's reports, and of any non-conformities in any ISO 27001 or similar security audits. Such notice shall provide [REDACTED] with the full particulars of any breaches or weaknesses found. Provider shall undertake immediate corrective action to address any such breach or weakness in accordance with an action plan approved by [REDACTED].

12. INTELLECTUAL PROPERTY.

- 12.1 Software, Materials, and Data. Neither Provider nor any subcontractor shall have any ownership interest in any [REDACTED] Software, [REDACTED] Materials, [REDACTED] Data, or other intellectual property that [REDACTED] provides to Provider, discloses to Provider or allows Provider to Use in any way. Provider irrevocably assigns, transfers and conveys, and will cause its subcontractors to assign, transfer and convey, to [REDACTED], without further consideration, any right, and interest that it or they may possess or claim in or to any [REDACTED] Software, [REDACTED] Materials, [REDACTED] Data, or other intellectual property that [REDACTED] provides to Provider, discloses to Provider or allows Provider to Use, and to cause Provider's employees and those of its subcontractors to waive and agree not to assert any moral rights or reversionary rights they may possess in such [REDACTED] Software, [REDACTED] Materials, [REDACTED] Data, or other intellectual property that [REDACTED] provides to Provider, discloses to Provider or allows Provider to Use. If and to the extent such waivers are deemed invalid, Provider will, and will cause its employees and its subcontractors to grant to [REDACTED] the exclusive, perpetual, irrevocable, worldwide and royalty-free right to use, modify and distribute such items without any requirement of attribution or prior consent. Upon request by [REDACTED], Provider will execute and deliver, and will cause its subcontractors to execute and deliver, any instruments or other documents that may be necessary or desirable under any Law to preserve, or enable [REDACTED] to enforce, its rights under this provision. Subject to Section 4.7, [REDACTED] grants to Provider a limited, non-exclusive and non-transferable right to Use the [REDACTED] Software, [REDACTED] Materials, and [REDACTED] Data directly or through permitted subcontractors, solely in and for performing the Services pursuant to this Agreement and to the extent permitted under any applicable Third-Party Agreements.
- 12.2 Deliverables. Unless otherwise expressly provided in an SOW, neither Provider nor any of its subcontractors (or any of its or their employees) shall have any ownership interest in any

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Deliverables, other than Provider's continuing rights in and to any Provider Materials and Provider Software that may be embodied and identified in such Deliverable. All Deliverables developed by Provider or its subcontractors in connection with the performance of Services shall be [REDACTED] exclusive property and are "works for hire" owned by [REDACTED] within the meaning of U.S. copyright Laws. If any such Deliverables are not considered a work made for hire under applicable Law, Provider hereby irrevocably assigns, and agrees to assign, and will cause Provider's Personnel to assign, and agree to assign, to [REDACTED] without additional consideration all of its and their right, title and interest in and to such Deliverables and to cause Provider's Personnel engaged in the preparation of the Deliverables to waive and agree not to assert any moral rights or reversionary rights, excluding Provider Software or Provider Materials embodied and identified therein. If and to the extent such waivers are deemed invalid, Provider will, and will cause Provider's Personnel engaged in the preparation of the Deliverables, to grant to [REDACTED] the exclusive, perpetual, irrevocable, worldwide and royalty-free right to Use the Deliverables without any requirement of attribution or prior consent. Provider shall execute any documents and take any other actions reasonably requested by [REDACTED] to accomplish the purposes of this Section. [REDACTED] grants to Provider, during the term of this Agreement, a limited, non-exclusive and non-transferable right to Use the Deliverables, directly or through permitted subcontractors, solely in and for providing the Services to [REDACTED].

12.3 [REDACTED] Intangible Property. If Provider possesses or controls any [REDACTED] Data, [REDACTED] Software, related documentation or other intangible property of [REDACTED], including all work-in-progress that uses the foregoing (collectively, "[REDACTED] Intangible Property"), Provider shall, upon [REDACTED] request at any time, without prejudice to any additional requirements specified in this Agreement, an SOW or otherwise, and without additional charge to [REDACTED], (i) provide [REDACTED] with physical and electronic access to such [REDACTED] Intangible Property, (ii) promptly return to [REDACTED], in the format and on the media requested by [REDACTED], all or any part of such [REDACTED] Intangible Property, and (iii) erase or destroy all or any part of such [REDACTED] Intangible Property, in each case to the extent so requested by [REDACTED]; provided, however, that Provider may retain a copy thereof to the extent, and for so long as, reasonably necessary to perform the Services, Termination Assistance Services or other activities reasonably related to termination or expiration, unless otherwise instructed by [REDACTED]. Provider has no right to retain, encrypt, corrupt or destroy any [REDACTED] Intangible Property (other than retaining archival copies, if any, authorized by [REDACTED]), and waives all statutory or common law liens, claims of lien or similar rights, remedies or encumbrances that may now or hereafter exist and might limit or condition Provider's unconditional obligations to return [REDACTED] Intangible Property. The foregoing requirement is in addition to any other requirements contained in applicable SOWs, Standard Operating Procedures or other documentation concerning periodic deliveries of [REDACTED] Intangible Property.

12.4 Provider Software and Materials.

- (a) [REDACTED] shall have no ownership rights in any Provider Software and Provider Materials that Provider provides to [REDACTED], discloses to [REDACTED] or allows [REDACTED] to Use in any way, including without limitation any Provider Materials and Provider Software incorporated or embedded in any Deliverable, and the assignment of rights contemplated under this Article 11.1 shall not apply to Provider Software or Provider Material.
- (b) Provider grants to [REDACTED] a perpetual, irrevocable, paid-up, royalty-free, worldwide, non-exclusive, sub-licensable but otherwise non-transferable (except to a successor of [REDACTED]) right to Use the Provider Software and Provider Materials that may be incorporated or embedded in any Deliverable in connection with [REDACTED] own business; provided, however, that [REDACTED] (or its successor or assign) may sub-license any Deliverable (incorporating Provider Software and Provider Materials) to unrelated Third Parties only for the purpose of providing services to [REDACTED], its Affiliates or their successors and assigns. [REDACTED] or its Affiliates shall not, and [REDACTED] shall cause its Third Parties entitled to Use Provider Software and Provider Materials hereunder

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not to, (i) use any Provider Software and Provider Materials independent of the Deliverables or Services; and/or (ii) reverse engineer the Provider Software.

12.5 Provider Responsibilities.

- (a) Provider will ensure that all Software Deliverables will include source code and documentation sufficient to allow a reasonably knowledgeable and experienced programmer to compile, maintain and support the Software.
- (b) [REDACTED] may make such filings and registrations as it deems advisable to obtain patent, copyright or other protection for such Deliverables and other [REDACTED] intellectual property in all countries. Provider will provide such assurances, take such action, and execute such further documents and instruments as [REDACTED] may reasonably request (at no material cost to Provider) to carry out the purposes of this Article and, in particular, to register or otherwise secure patent, copyright, trademark, service mark or other intellectual property protection in all countries for [REDACTED] intellectual property.
- (c) Unless otherwise provided in an SOW, Provider hereby agrees that it shall cause all [REDACTED] Data in its possession to be stored and housed only in the United States.

13. **CONFIDENTIAL INFORMATION AND SECURITY.**

13.1 Confidential Information.

- (a) [REDACTED] Confidential Information. Provider shall take all reasonable efforts to keep [REDACTED] Confidential Information in confidence. Except as authorized by [REDACTED] or as required by Law, Provider shall not disclose any of [REDACTED] Confidential Information to any person other than its own Personnel to the extent reasonably necessary to provide the Services. Provider shall not, and shall not permit its Affiliates or Personnel to, (i) use any of [REDACTED] Confidential Information for any purposes other than those contemplated by this Agreement or an SOW; (ii) assert a lien over any [REDACTED] Confidential Information or attempt to use any [REDACTED] Confidential Information as leverage in a dispute; or (iii) except as authorized in writing by [REDACTED], (1) sell, assign, lease, or otherwise commercially exploit [REDACTED] Confidential Information, including [REDACTED] Data or any part thereof or (2) aggregate or commingle [REDACTED] Data with Provider or Third Party data. Within ten (10) days following the earlier of: (a) termination or expiration of this Agreement, or (b) completion of Services, including Termination Assistance Services, or other project for which the Confidential Information has been provided, Provider must, at [REDACTED] discretion, either return to [REDACTED] all Confidential Information (including all copies/derivatives thereof); or certify in writing to [REDACTED] that such Confidential Information (including all copies/derivatives thereof) have been destroyed in such a manner that it cannot be retrieved. Provider's obligations to protect Confidential Information shall survive expiration or termination of this Agreement. If, in the reasonable opinion of its legal counsel, Provider is required by applicable Laws or court orders to disclose any Confidential Information in connection with any legal proceeding, then Provider may disclose such information to the arbitrator, court or other governmental authority, as the case may be; provided, in each case, Provider notifies [REDACTED] a reasonable time prior to such disclosure (to permit [REDACTED] to seek appropriate protective measures); and Provider requests and supports [REDACTED] efforts to seek appropriate protective measures.
- (b) Provider Confidential Information. [REDACTED] shall take all reasonable efforts to keep Provider Confidential Information in confidence. Except as authorized by Provider, permitted under this Agreement, or as required by Law, [REDACTED] shall not disclose any Provider Confidential Information to any person other than its Personnel. [REDACTED] shall not, and shall not permit its Affiliates or Personnel to, (i) use any Provider Confidential Information for any purposes other than those contemplated by this Agreement or an SOW, or (ii) except as authorized in writing by Provider, sell, assign, lease, or otherwise commercially exploit Provider Confidential Information. [REDACTED] obligations to protect Provider Confidential Information shall survive expiration or termination of this Agreement.

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If, in the reasonable opinion of its legal counsel, [REDACTED] is required by applicable Laws or court orders to disclose any Provider Confidential Information in connection with any legal proceeding, then [REDACTED] may disclose such information to the arbitrator, court or other governmental authority, as the case may be; provided, in each case, [REDACTED] notifies Provider a reasonable time prior to such disclosure (to the extent permitted by law and to permit Provider to seek appropriate protective measures).

- 13.2 Information Security Management Program. Provider will: (i) ensure the security, integrity, and availability of [REDACTED] Data and Confidential Information, (ii) protect against threats or hazards to the security, integrity, and availability of [REDACTED] Data and Confidential Information, including unauthorized access, use, disclosure, alteration, or destruction of [REDACTED] Data and Confidential Information, (iii) dispose of [REDACTED] Data and Confidential Information and tangible property containing such [REDACTED] Data and Confidential Information (as and when required), taking into account available technology so that such data cannot be practicably read or reconstructed, and (iv) comply with any additional security obligations set forth in the applicable SOW and Schedule B (Provider Global Cybersecurity Requirements). Without limiting the generality of the foregoing, Provider will (i) have in place a written incident response plan and documentation of its security policies, controls, and procedures ("**Information Security Management Program**") that are consistent with good industry standards and practices and satisfies the requirements of Schedule B (Provider Global Cybersecurity Requirements), (ii) provide appropriate training to its employees regarding its Information Security Management Program and data privacy policies and procedures, and (iii) make information concerning the foregoing available to [REDACTED] upon request. Provider acknowledges that to the extent it receives payment card or cardholder data in connection with the Agreement, Provider is responsible for complying with current Payment Card Industry ("**PCI**") Data Security Standards (as updated by PCI from time to time).
- 13.3 Facilities Segregation. Provider agrees to segregate [REDACTED] Data and information logically and physically from Provider's other customers' data and information, as further detailed in an SOW. Provider agrees to establish and maintain separate and secure areas within its facilities for the delivery of the Services to [REDACTED]. Provider shall not permit its Personnel to provide services to [REDACTED] Competitors while assigned to the [REDACTED] account. This restriction will not apply to general, non-material, indirect infrastructure supporting services such as mailroom services.
- 13.4 Unauthorized Use or Disclosure. Provider will notify [REDACTED] in writing within twenty-four (24) hours if Provider becomes aware of any actual or suspected (i) breach of security leading to the accidental or unlawful destruction, loss, alteration, unauthorized disclosure of, or access to, [REDACTED] Data or Confidential Information, (ii) unauthorized access, acquisition, disclosure or use of [REDACTED] Data or Confidential Information, or (iii) breach of security with respect to Provider's (including its subcontractors') systems that store or process [REDACTED] Data or Confidential Information (in each case, a "Security Incident"). Following providing notification of a Security Incident, Provider will (a) reasonably cooperate with [REDACTED] to investigate the Security Incident, and (b) preserve all information and evidence related to the Security Incident. In addition and without limiting the foregoing, upon [REDACTED]' reasonable written request and where appropriate, Provider agrees to retain an independent forensic investigator that has signed a confidentiality agreement (with terms containing duties of non-disclosure and restrictions on use of the Confidential Information at least as restrictive as those set forth in the Agreement), at Provider's cost to preserve the affected servers, to investigate the scope and cause of the Security Incident (including which data fields were compromised and the individuals affected by such compromise) and to minimize the effects of the Security Incident, including steps to secure [REDACTED] Data or Confidential Information. In such case, Provider agrees (so long as permitted by Law) to permit the forensic investigator to disclose any information and evidence to [REDACTED] solely related to [REDACTED] Data or Confidential Information, including without limitation cause, scope, and extent of the Security Incident; provided, however, [REDACTED] will cooperate with Provider to mitigate any potential adverse affect on Provider's remediation, mitigation, recovery or enforcement activities. Provider shall

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not charge [REDACTED] for the cost of any services required to be performed and technical and Personnel resources required to be implemented in connection with the investigation or remediation. Except as may be required by applicable Law, Provider agrees that it will not disclose the Security Incident to any Third Party without first obtaining [REDACTED] prior written consent, provided however, that the preceding shall not apply to or limit Provider's disclosure to professional advisors and forensics investigators that are subject to confidentiality obligations as needed in order to address, investigate, and mitigate the impact of the Security Incident. To the extent that a Security Incident was due to the failure of Provider to comply with its security obligations under this Agreement and such Security Incident gives rise to a need pursuant to applicable Law, to provide (i) notification to public authorities, individuals, or other persons, or (ii) undertake other remedial measures (including, without limitation, notice to affected individuals, offering credit monitoring services or identity theft protection insurance to affected individuals for at least one year, or the establishment of a call center to respond to inquiries (each of the foregoing a "**Remedial Action**")), at [REDACTED] request, Provider shall, (x) undertake such Remedial Actions at Provider's cost, or (y) reimburse [REDACTED] for any such Remedial Action undertaken by [REDACTED]. The timing, content and manner of effectuating any notices shall be determined solely by [REDACTED].

13.5 Data Security Audits and Certifications. In addition to Article 11 of the Agreement, [REDACTED] may request upon fourteen (14) calendar days written notice to Provider (unless shorter notice is reasonably required by [REDACTED] in connection with a Security Incident), and Provider will provide (and will cause its affiliates, agents, or subcontractors to provide) [REDACTED] (or its designated representatives) with access to facilities, systems, data backups, records and supporting documentation in order to audit Provider's (and/or its Personnel's) compliance with its obligations under this Article 13. Audits will be conducted in a manner that minimizes any disruption of Provider's performance of Services and other normal operations. Provider shall take proper steps to address any privacy or security risks identified by [REDACTED] because of such audit. In addition, upon [REDACTED] request, and at such reasonable intervals as [REDACTED] or their auditors may specify, but no less than quarterly, an appropriate officer of Provider will certify to [REDACTED] that, to the best of his or her knowledge, after reasonable inquiry: (a) Provider has reported all Security Incidents, suspected fraud or other irregularities or reportable incidents that may constitute violations of its Information Security Management Program; (b) Provider has reported to [REDACTED] all apparent material weaknesses and deficiencies in the security measures contemplated under its Information Security Management Program of which Provider is aware; and (c) Provider has made such other factual certifications concerning its Information Security Management Program as [REDACTED] or its auditors may reasonably request.

13.6 Data Privacy. In addition to the other provisions of this Article 13, the following privacy and data protection provisions will apply to any [REDACTED] Data consisting of Personal Data.

- (a) To the extent that Provider engages in Personal Data Processing in connection with this Agreement, Provider will engage in such Personal Data Processing only for the purpose of fulfilling Provider's obligations under the Agreement, at the direction of and in accordance with the instructions of [REDACTED], and in accordance with the Personal Data Processing Addendum set out in Schedule C to this Agreement. The Parties agree that Personal Data shall be considered [REDACTED] Confidential Information (regardless of whether any such Personal Data is now or subsequently becomes publicly available through no fault or breach on the part of Provider).
- (b) Provider will engage in Personal Data Processing solely in the United States and will not engage in Personal Data Processing in any other jurisdiction unless Provider (i) has obtained the prior written consent of [REDACTED] for such transfer or access, and (ii) has taken appropriate measures to comply Unless otherwise agreed by the Parties with applicable Data Protection Legislation (as defined in Schedule C) prior to such transfer or access. [REDACTED] written consent under subsection (i) of this Section 13.6(b) is deemed to have been provided if such transfer is described in an SOW to this Agreement, unless mandatory local law provides otherwise.

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- (c) Provider shall promptly provide notice to [REDACTED] of any requests implicating privacy or data protection rights of any data subject whose Personal Data was subjected to Personal Data Processing by Provider, including any such requests from government officials (including any data protection agency or law enforcement agency) or other Third Party (each a "**Data Protection Communication**"). Provider shall promptly assist as requested by [REDACTED] in connection with any Data Protection Communication and shall obtain [REDACTED] consent before sharing any Personal Data with any government authorities or other Third Parties. Provider understands that it is not authorized to respond to a Data Protection Communication unless explicitly authorized by [REDACTED] or the response is legally required under a subpoena or similar legal document issued by a government agency that compels disclosure by Provider.

14. REPRESENTATIONS AND WARRANTIES.

14.1 Mutual Representations and Warranties. Each Party represents and warrants to the other as follows:

- (a) It is duly organized and validly existing under the Laws of its jurisdiction of organization.
- (b) It has all necessary organizational power to own and hold its property and assets and to carry on its business as presently conducted and it is duly and properly qualified to carry on its business in those jurisdictions where qualification is necessary for the conduct of its business.
- (c) It has all necessary organizational power to enter into this Agreement and to perform its obligations hereunder.
- (d) The execution, delivery and consummation of all transactions contemplated in this Agreement have been duly authorized by all necessary organizational action on its part.
- (e) This Agreement constitutes a legal, valid and binding obligation of such Party, enforceable in accordance with its terms.

14.2 Provider Representations, Warranties and Covenants.

- (a) Provider represents and warrants to [REDACTED] that Provider's use of Provider Software does not violate any copyright, patent, or other proprietary right of any Third Party and Provider has no knowledge of any such claim or potential claim.
- (b) Provider covenants that Services will be performed in a competent and professional manner, consistent with good practice in its industry and meet the Service Levels.
- (c) Provider covenants that it will take commercially reasonable efforts to ensure that the Services will be free, at the time of receipt by [REDACTED], of any Unauthorized Code. "**Unauthorized Code**" means any feature, routine or device that is intended or designed, either automatically, upon the occurrence of a certain event, upon the taking of or failure to take a certain action or under the control of a Third Party to disrupt the operation of, destroy, erase, damage or otherwise render inoperable the Services or any other [REDACTED] electronic system (e.g., malicious programs, viruses, worms, password checking, CPU serial number checking, time dependencies, etc.).
- (d) Provider covenants that if [REDACTED] Data or Deliverables contain any errors caused by malfunction of Provider's equipment or Provider Software or Third-Party Software utilized by Provider in the performance of Services, or by operational errors of Provider or its employees or subcontractors, Provider shall use commercially reasonable efforts to promptly rerun, revise or supplement such affected [REDACTED] Data or Deliverables as [REDACTED] may reasonably request, without additional Charges.
- (e) Provider will perform Services in compliance with all applicable Laws.
- (f) Provider will comply, and cause its Personnel to comply, with ethical standards approved by [REDACTED] and at least as stringent as [REDACTED] ethical standards in effect from time to time and disclosed to Provider in writing. Provider will promptly report to UL

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Solutions any (i) violations or attempted violations of those ethical standards, (ii) theft, fraud or other similar misconduct, and (iii) breaches of confidentiality, security or controls of which Provider becomes aware during the performance of Services.

- (g) All Deliverables shall consist of (i) wholly original works of Provider and/or (ii) matter that Provider may use and transfer to [REDACTED] without breach of any legal or contractual obligation, or infringement of any Third Party's proprietary rights. Provider shall not infringe the copyrights, patents, or trade secrets of any Third Party and agrees that, unless specifically agreed to the contrary in writing, [REDACTED] may Use all Deliverables provided to [REDACTED], free of any restriction, the need for any consent, or royalty payable to Provider or any Third Party.
- (h) The Services and Deliverables will conform to the specifications and requirements in this Agreement and the applicable SOW in all material respects.

14.3 Disclaimers. THERE ARE NO WARRANTIES BY EITHER PARTY, OTHER THAN THOSE STATED IN THIS AGREEMENT, AND PROVIDER DISCLAIMS ANY IMPLIED WARRANTIES, INCLUDING, WITHOUT LIMITATION, ANY IMPLIED WARRANTIES OF MERCHANTABILITY, AND FITNESS FOR A PARTICULAR PURPOSE.

15. INSURANCE.

15.1 Required Insurance. Provider will, at its own expense, obtain and maintain the following insurance:

- (a) Commercial General Liability, with coverage including, but not limited to, premises/operations, contractual, personal and advertising injury, and products/completed operations liabilities, with limits of at least \$3,000,000 per occurrence and in the annual aggregate for bodily injury and property damage combined. [REDACTED] shall be named as an additional insured, with the standard "separation of Insureds" provision or an endorsement for cross-liability coverage and state that coverage is primary, and non-contributory with other available coverage. Except where prohibited by Law, the insurance carrier shall waive all rights of subrogation that the insurer may have against [REDACTED]. Provider warrants that its subcontractors will maintain Commercial General Liability insurance, and Provider shall indemnify [REDACTED] for any Losses suffered by [REDACTED] as a result of failure of its subcontractors to maintain such insurance. Limits of liability requirements may be satisfied by a combination of Commercial General Liability and Umbrella Excess Liability policies.
- (b) If any persons are employed or uninsured independent Providers are hired by Provider at any time during the term of this Agreement, Workers' Compensation insurance (applicable to Provider's entities located in the United States), including coverage for all costs, benefits, and liabilities under Workers' Compensation and similar Laws which may accrue in favor of any person employed by Provider, for all states or jurisdictions in which Provider will perform services for [REDACTED], and Employer's Liability insurance with limits of liability of at least USD \$1,000,000 per accident or disease and USD \$1,000,000 aggregate by disease. Provider warrants that its subcontractors will maintain Workers' Compensation and Employer's Liability insurance, and Provider shall indemnify [REDACTED] for any Losses suffered by [REDACTED] as a result of failure of its subcontractors to maintain such insurance. Provider may self-insure Workers' Compensation only in states where the governing state bureau has issued to Provider a qualified self-insurance license for Workers' Compensation.
- (c) Automobile Liability insurance applicable to Provider's entities located in the United States) for non-owned and hired vehicles, with limits of at least \$1,000,000 per occurrence and in the annual aggregate for bodily injury and property damage combined. If no vehicles are owned or leased, the Commercial General Liability insurance shall be extended to provide insurance for non-owned and hired automobiles in lieu of separate Automobile Liability insurance. Limits of liability requirements may be satisfied by a combination of Automobile Liability and Umbrella Excess Liability policies.

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- (d) Professional Liability or Errors & Omissions Insurance with limits of not less than USD \$5,000,000 per claim and annual aggregate, covering all acts, errors, omissions, negligence, unintentional infringement of intellectual property (except patent and trade secret) in the performance of services for [REDACTED] or on behalf of [REDACTED] hereunder. Such insurance shall be maintained in force at all times during the term of the agreement and for a period of three (3) years thereafter for services completed during the term of the agreement. [REDACTED] shall be given by the Provider at least thirty (30) days' notice of the cancellation or expiration of the aforementioned insurance for any reason.
- (e) Crime (Fidelity) insurance with limits of not less than USD\$5,000,000 per occurrence and in the annual aggregate. Insurance shall extend coverage to include all directors, officers, agents, contractors and employees of the Provider. The insurance policy must include coverage, for any and all acts of employee theft, forgery or alteration, funds transfer fraud, counterfeit money, and computer fraud. Such insurance shall be maintained in force at all times during the term of the agreement and for a period of three (3) years thereafter for services completed during the term of the Agreement. [REDACTED] shall be given at least thirty (30) days notice by the Provider of the cancellation or expiration of the aforementioned insurance for any reason.
- (f) Cyber Liability insurance with limits of no less than USD \$5,000,000 each claim and in the annual aggregate. The policy must include third party liability coverage for loss, disclosure and theft of data in any form, including personally identifiable information, personal health information, and intellectual property of [REDACTED]; media and content rights infringement and liability, including software copyright infringement if not included under other coverage, network security failure; denial-of-service attacks; transmission of malicious code. The policy must include first party coverage for data breach regulatory fines and penalties, plus cost of notifying individuals of a data breach, cost of credit monitoring services and other crisis management expenses as may be required by law.
- 15.2 Policies. Insurance shall be purchased from companies having a rating of A- VII or better in the current Best's Insurance Reports published by A.M. Best [REDACTED] or from insurance companies who are rated with the equivalent ratings applicable in other geographies. Insurance policies shall not be cancelled or materially changed without at least thirty (30) days prior written notice to [REDACTED] by the Provider. Evidence of insurance shall be submitted in advance of or concurrent with the execution of this Agreement, on each insurance policy renewal thereafter, and annually for two years after this Agreement ends. Prior to the expiration of any policies, Provider must provide a renewal Certificate of Insurance. Insurance Certificates must be delivered to globalsuppliermaintenance@ul.com.
- 15.3 Coverage.
- (a) If Provider does not provide [REDACTED] with such evidence of insurance or such policies are not in accordance with Section 15.1, [REDACTED] will so advise Provider, but [REDACTED] failure to do so is not a waiver of these insurance requirements. If Provider does not furnish evidence of acceptable coverage within thirty (30) days of UL's notification, [REDACTED] shall have the right, in its sole discretion, to (a) withhold payments from Provider until evidence of adequate coverage is provided, or (b) deem such failure as a material breach.
- (b) Failure to obtain and maintain required insurance or failure by [REDACTED] to notify Provider shall not relieve Provider of any obligation contained in this Agreement. Additionally, any approval by [REDACTED] of any of Provider's insurance policies shall not relieve Provider of any obligation contained in this Agreement, including liability for claims in excess of described limits.
- 16. INDEMNITY.**
- 16.1 Provider General Indemnity. Provider will indemnify, defend and hold [REDACTED], its officers, directors, employees, agents and Affiliates, and their respective officers, directors, employees

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and agents (collectively, the "[REDACTED] Indemnitees"), harmless from and against, any Claims to the extent resulting from, arising out of or relating to the following:

- (a) Provider's errors, omissions or failure to provide the Services;
- (b) Provider's breach of any warranty, representation or covenant made by Provider under Sections 14.1, Section 14.2(a), 14.2 (e), 14.2 (f) and 14.2(g) of this Agreement;
- (c) Reserved;
- (d) Provider's failure to appropriately obtain, maintain and comply with any notice, consent, license or authorization from any regulatory, governmental or other authority necessary, required or customary for the Provider to enter into or perform its obligations under this Agreement;
- (e) Provider's failure to perform Services in compliance with all applicable Laws;
- (f) (i) a work-related injury of Provider's Personnel not caused by [REDACTED], (ii) any employee benefits of Provider employees, or any aspect of the Contract Staff's employment relationship with Provider or the termination of the employment relationship with Provider, including but not limited to any claims for co-employment of the Contract Staff with [REDACTED]; (iii) any claims asserted by Provider subcontractors; or (iv) any contracts, relationships and dealings between Provider and any Third Party that relate in any way to performance of the Services;
- (g) any amounts, including taxes, interest and penalties, assessed against [REDACTED] that are the obligation of Provider;
- (h) breach by Provider of its obligations under Section **Error! Reference source not found.** ([REDACTED] Intangible Property) or Article 13 (Confidential Information and Security) of this Agreement;
- (i) personal injury (including death) or property loss or damage resulting from Provider's acts or omissions; or
- (j) Provider's fraud, gross negligence, willful, or intentional misconduct.

Provider will indemnify [REDACTED] from any Losses reasonably incurred in connection with the enforcement of this Section.

16.2 Provider Intellectual Property Indemnity. Provider will indemnify, defend and hold the [REDACTED] Indemnitees harmless from and against any Claim to the extent resulting from, arising out of or relating to the Services, Deliverables, Provider Software, or Provider Materials (each an "**Indemnified Item**") that (i) infringes a copyright under United States or other applicable Law, (ii) infringes a patent granted under United States or other applicable Laws, (iii) constitutes an unlawful disclosure, use or misappropriation of another party's trade secret or (iv) violates any other intellectual property rights. Provider will bear the expense of such defense and pay any damages and reasonable attorneys' fees that are attributable to such Claim finally awarded by a court of competent jurisdiction.

- (a) If an Indemnified Item becomes the subject of a Claim under this Section 16.2, or in Provider's opinion is likely to become the subject of such a Claim, then Provider may, at its option, (i) modify the Indemnified Item to make it non-infringing or cure any claimed misuse of another's trade secret, provided such modification does not adversely affect the functionality of the Indemnified Item, (ii) procure for [REDACTED] the right to continue using the Indemnified Item pursuant to this Agreement, or (iii) replace the Indemnified Item with an Indemnified Item that is substantially equivalent that is non-infringing or that is free of claimed misuse of another's trade secret. Any costs associated with implementing any of the above alternatives will be borne by Provider. If none of the foregoing courses of action is practical, the allegedly infringing Item will be withdrawn, and the scope, Charges and Service Levels will be equitably adjusted to reflect such withdrawal. Provider's exclusive

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liability and [REDACTED] sole remedy for any Claim related to an Indemnified Item shall be those set forth in this Section 16.2(a).

- (b) Notwithstanding the foregoing, with respect to any Indemnified Item, Provider will have no liability to [REDACTED] under this Section 16.2, (i) to the extent that any Claim of infringement is based upon the use of the Indemnified Item in combination with equipment, devices or Software not authorized by Provider, (ii) for infringements that arise solely as a result of the implementation by Provider of functionality requirements presented by [REDACTED] where there is no non-infringing alternative to such implementation, and [REDACTED] has been so advised by Provider prior to implementation, and (iii) for modifications to the Provider Software made by a party other than Provider or its subcontractors and that was not made at Provider's instruction or that was not authorized by Provider.

16.3 Indemnatee Responsibilities. If any Claim is commenced against [REDACTED] that is entitled to indemnification under this Article, [REDACTED] will provide notice of the Claim and copies of all related documentation to Provider. Such notice and documentation will be provided as promptly as possible. [REDACTED] will cooperate, at Provider's expense, in all reasonable respects with Provider and its attorneys in the investigation, trial and defense of such Claim and any appeal. [REDACTED] may, at its own expense, participate, through its attorneys or otherwise, in such investigation, trial and defense of such Claim and any appeal. In such case, Provider will cooperate with the [REDACTED] Indemnatee's attorneys.

16.4 Settlement. Provider will have no liability with respect to any settlement reached without its prior written consent. Settlements of indemnified claims will be subject to [REDACTED] approval, which will not be unreasonably withheld or delayed; provided, however, that such consent may be given or withheld in [REDACTED] sole discretion to the extent the settlement admits liability, stipulates to any declaratory or equitable remedy, or affects [REDACTED] intellectual property or Confidential Information.

16.5 Indemnity. [REDACTED] will indemnify, defend and hold Provider and its Affiliates, and their respective officers, directors and employees harmless from and against any Claim to the extent arising from or relating to [REDACTED] Data, [REDACTED] Software and [REDACTED] Materials used by Provider in the provision of Services that infringes the intellectual property rights of any Third Party. Section 16.3 and Section 16.4 shall apply with equal force and effect to [REDACTED] as the indemnifying party and Provider as the indemnified party with respect to a Claim against Provider under this Section 16.5.

17. LIMITATION OF LIABILITY.

- (a) EXCEPT AS OTHERWISE EXPRESSLY PROVIDED IN SECTION 17(c), SECTION 17(d) AND SECTION 17(e) BELOW, THE PARTIES SHALL NOT BE LIABLE TO ONE ANOTHER IN CONTRACT, TORT (INCLUDING NEGLIGENCE), FOR BREACH OF WARRANTY OR OTHERWISE, FOR ANY CONSEQUENTIAL, INDIRECT, SPECIAL, EXEMPLARY OR PUNITIVE DAMAGES (INCLUDING LOSS OF PROFITS, LOSS OF GOODWILL OR BUSINESS REPUTATION, LOSS OF ANTICIPATED SAVINGS), (COLLECTIVELY, "INDIRECT DAMAGES") ARISING FROM ANY ACT OR OMISSION OF THE RELEVANT PARTY, OR ITS AFFILIATES, OFFICERS, AGENTS, EMPLOYEES, OR SUBCONTRACTORS EVEN IF ADVISED OF THE POSSIBILITY OF SUCH LOSSES OR DAMAGES. Notwithstanding the foregoing, costs associated with the following shall in no event be considered consequential, indirect, special, exemplary or punitive damages: (i) mitigation of Losses; (ii) substitute products or services or other corrective or remedial measures reasonably undertaken by [REDACTED] due to Provider's breach under the Agreement; (iii) costs and expenses to repair, recreate or reload any lost, stolen or damaged [REDACTED] Data from the last backup (or to the extent data backup is within Provider's scope of Service, from the last backup that was supposed to be performed); (iv) cover damages, including costs and expenses incurred to procure the Services or corrected Services from an alternate source or for [REDACTED] to perform the Services internally; (v) expenses incurred due to failure of Provider to provide all or a portion of the

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Services or otherwise perform in accordance with this Agreement relating to overhead allocations for employees, wages and salaries, travel expenses, overtime expenses and telecommunications charges; and (vi) payments, fines, penalties or interest imposed by a governmental body or regulatory agency for failure to comply with requirements or deadlines.

- (b) EXCEPT AS OTHERWISE EXPRESSLY PROVIDED IN SECTION 17(c) AND SECTION 17(e) BELOW, EACH PARTY'S TOTAL LIABILITY (IN CONTRACT, WARRANTY, TORT (INCLUDING NEGLIGENCE), INDEMNITY, STATUTE OR OTHERWISE) FOR ANY ACTS OR OMISSIONS ARISING FROM OR RELATING TO THE PERFORMANCE OF THIS AGREEMENT SHALL BE LIMITED TO PAYMENT OF ACTUAL DAMAGES, UP TO AN AGGREGATE MAXIMUM FOR ALL CLAIMS THAT ARISE UNDER OR RELATE TO THE AGREEMENT EQUAL TO THE GREATER OF (I) PROVIDER'S CHARGES PAID OR PAYABLE (EXCLUDING EXPENSE REIMBURSEMENTS, PASS THROUGH EXPENSES AND TAXES, IF ANY), DURING THE TWENTY FOUR (24) MONTHS PRECEDING ACCRUAL OF THE LAST CLAIM ASSERTED BY CUSTOMER; OR (II) \$10,000,000). Amounts paid or credited as Service Credits shall not count toward the foregoing limits.
- (c) The limitations set forth in Sections 17(a) and 17(b) shall not apply to:
- (i) Either Party's liability arising out of gross negligence, intentional misconduct, or fraud;
 - (ii) Either Party's liability arising out violations of Law;
 - (iii) Indemnification obligations set forth under Sections 16.1(b) through 16.1(j);
 - (iv) Provider's breaches of confidentiality and security obligations (including any breach of Article 13);
 - (v) Indemnification obligations set forth under Sections 16.2 and 16.5;
 - (vi) Provider's intentional abandonment of a material portion of the Services and/or Termination Assistance Services;
 - (vii) Indemnification obligations set forth under Schedule F (Personnel Hiring).

Provided that the Super Cap set forth in Section 17(e) below shall apply to any and all Personal Data Breaches, whether brought as a direct claim or an indemnity claim by UL.

- (d) Provider's indemnification obligations under Section 16.1 (a) shall not be subject to the exclusion for Indirect Damages set forth under Section 17(a), so long as any damages payable by Provider do not exceed the cap set forth in Section 17(b). For the avoidance of doubt, [REDACTED] shall be entitled to recover direct and Indirect Damages resulting from Claims under Section 16.1 (a) up to the liability cap set forth in Section 16.1(b).
- (e) Notwithstanding any term or condition in this Agreement to the contrary, Provider's aggregate liability for all losses, liabilities and damages (including for Indirect Damages) arising out of or in connection with Provider's violation of Data Protection Legislation or non-compliance with its obligations related to Personal Data ("Personal Data Breaches") regardless of form of action, whether based on contract, warranty, tort (including negligence), statute or otherwise), shall in no event exceed a sum equal to the greater of
- (i) Provider's charges (excluding expense reimbursements, pass through expenses and taxes, if any) paid or payable during the thirty-six (36) months preceding the date the claim arose, or
 - (ii) \$15,000,000 ("Super Cap").

18. TERM AND TERMINATION.

- 18.1 Term and Renewals. The term of this Agreement shall commence on the Effective Date and shall end (unless renewed or terminated in accordance with this Article) upon the conclusion of five (5) years (the "**Initial Term**"). [REDACTED] may renew this Agreement for up to two successive terms ("**Renewal Terms**") of one year each, upon the terms then in effect by giving

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written notice of its election to renew at least sixty (60) days before the Agreement would otherwise expire.

18.2 Termination by Provider. Provider may terminate an individual SOW by written notice to [REDACTED] if [REDACTED] is more than forty-five (45) days past the due date under this Agreement in paying undisputed amounts in excess of one (1) months' Charges actually due under such SOW; provided, that, Provider provides [REDACTED] with written notice of such breach (following the expiration of such forty-five (45) day period) and [REDACTED] has failed to cure such breach within a thirty (30) day period following receipt of that notice.

18.3 Termination by [REDACTED]. [REDACTED] may terminate this Agreement or any SOW hereunder, in whole or in part, upon written notice if:

- a) Provider fails to cure any material breach of its obligations hereunder within thirty (30) days after receipt of written notice; or
- b) Provider's material breach is not reasonably subject to cure within thirty (30) days after receipt of written notice from UL, and Provider fails to submit a plan to cure reasonably acceptable to [REDACTED] within that period, or thereafter fails to use commercially reasonable efforts to prosecute the approved plan to completion within sixty (60) days; or
- c) If Provider commits numerous breaches on a continuous basis that may be immaterial individually, provided, that, Provider has been notified of such breaches and has been given adequate opportunity to cure, but the breaches persist and are material in the aggregate, and Provider fails, within thirty (30) days after receiving notice of the last such breach forming part of the aggregate material breach specifying the nature of the breach and [REDACTED]' intention to exercise its right under this Section 18.3(c), to cure the breach and complete a corrective action plan to prevent recurrence; or
- d) Provider fails to cure any material weakness in relevant controls identified by any auditor in accordance with Section 11, within thirty (30) days; or
- e) Provider fails for any reason to substantially restore all Services within thirty (30) days after a Force Majeure Event; or
- f) Provider materially breaches any of its obligations concerning data security; or
- g) Not Used
- h) Provider files, or has filed against it, any petition or action under any bankruptcy, reorganization, insolvency, arrangement or similar Law for the relief of debtors if such petition or action is not dismissed within ninety (90) days after filing. For purposes of Title 11 of the United States Code (11 U.S.C. Sec. 101, *et. seq.*) ("**Bankruptcy Code**"), all licenses granted by Provider pursuant to this Agreement are, and are intended to be, for purposes of Section 365(n) of the Bankruptcy Code, licenses to "intellectual property" as defined in the Bankruptcy Code, and if bankruptcy proceedings are brought by or against Provider under the Bankruptcy Code each such licensee will be entitled to retain all of its rights under this Agreement.

[REDACTED] shall exercise its termination option under sub-sections (a) through (h) above by delivering Provider a written notice identifying the scope and specifying reasons of termination and the termination date (which shall be subject to the provisions of this Agreement concerning termination assistance services).

18.4 Not Used

19.1 Termination for Convenience. [REDACTED] may terminate this Agreement (or any SOW hereunder), in whole or in part, prior to the end of the Term without cause for its convenience upon one hundred and eighty (180) days' prior written notice to Provider.

18.6 Not Used

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- 19.3 Effect on SOWs. Termination of an individual SOW will not relieve the Parties of any obligations with respect to any other SOW(s). In the event of an expiration of this Agreement, the Parties' obligations with respect to any outstanding SOWs will continue until such SOW is completed or terminated, and the terms of this Agreement will continue to apply to any such SOW.
- 19.4 Termination Assistance Services. Upon expiration or effective date of any termination of the Agreement, Provider will cooperate with [REDACTED] and provide [REDACTED] with all reasonable services and assistance requested by [REDACTED] to assure the orderly transfer of [REDACTED] data and systems to [REDACTED] or to a new Third Party service provider ("**Termination Assistance Services**") for a period up to eighteen (18) months. Termination Assistance Services includes but is not limited to the Services described in any SOW. [REDACTED] reserves the right to phase out one or more Services, change the sequence of particular activities and take other reasonable action that it deems advisable to effect an orderly transition. If no Charges are specified in the SOW, then the Charges shall be at Provider's then-current standard rates. Provider acknowledges that, if it were to breach, or threaten to breach, its obligation to provide Termination Assistance Services, [REDACTED] would be irreparably harmed and that money damages would provide no adequate remedy. Accordingly, in any such circumstances, [REDACTED] shall be entitled to proceed directly to a court of competent jurisdiction and obtain such injunctive, declaratory or other equitable relief as may be reasonably necessary to prevent such breach, compel performance and preserve the status quo by assuring continued performance of all Services (including Termination Assistance Services). Provider irrevocably waives any requirement that [REDACTED] post any bond or undertaking or demonstrate irreparable harm or the inadequacy of money damages.
- 19.5 Return. Without limiting the generality of Section 18.8 and in addition to the obligations set out in Section 12.3, Provider shall return all Third-Party Software in the form maintained, or as otherwise reasonably requested by [REDACTED] at any time.
- 19.6 Survival. Notwithstanding the expiration or termination of this Agreement, those rights and obligations which are stated to survive pursuant this Agreement, or which by their nature are intended to survive such expiration or termination, shall so survive, including (without limitation) the following Articles and Sections: Article 1 (Definitions); Article 2 (Agreement Structure); Article 11 (Audit); Article 11.1 (Intellectual Property); Section **Error! Reference source not found.** ([REDACTED] Intangible Property); Article 13 (Confidential Information and Security); Article 15.3(b) (Indemnity); Article 17 (Limitation of Liability); Article 18 (Term and Termination); Article 20 (Governing Law and Dispute Resolution); and Article 21 (General Provisions).
- 19.7 Termination Charges. In event of termination of this Agreement and/or a SOW pursuant to Sections 18.2 (Termination by Provider) or 18.5 (Termination for Convenience), [REDACTED] shall pay the termination charges (if any) to Provider as set forth in the applicable SOW.

20. COMPLIANCE WITH [REDACTED] POLICIES.

- 20.1 Anti-Corruption. Provider must uphold legal, ethical, and moral standards at all times in the performance of Services. Provider is responsible for ensuring that (i) it complies with all applicable tax, anti-bribery and anti-corruption laws, regulations, and other legal requirements (including the U.S. Foreign Corrupt Practices Act and U.K. Bribery Act), (ii) no offer, promise, or payment of any money, gift or any other thing of value will be paid to any person for the purpose of influencing official actions or decisions affecting this Agreement, (iii) it will obtain all applicable export licenses and will not cause [REDACTED] to violate any trade sanction laws administered by the U.S. Department of Treasury, U.S. Office of Foreign Asset Control, or other applicable governmental entity, and (iv) it will ensure that any payments made to [REDACTED] or its Affiliates will not be paid from a financial institution and account subject to any U.S. trade sanction law. [REDACTED] may conduct screenings of Provider, its Affiliates, and their Personnel to ensure compliance with laws, orders by the U.S. Office of Foreign Asset Control or other governmental agencies, or other similar directives, including as they apply to Specially Designated Nationals or Blocked Persons lists. In the event such screenings present negative findings, [REDACTED] may terminate this Agreement and any SOWs in accordance with Section 18.3 of the

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Agreement, and will not have any payment obligations to Provider after the effective date of termination.

- 20.2 Conflicts of Interest. Provider may not (i) use its engagement by [REDACTED] for personal financial gain; (ii) accept any personal advantage from anyone under circumstances which might reasonably be interpreted as an attempt to influence the recipients in the conduct of their duties related to this Agreement; or (iii) extend any special favor to employees of [REDACTED] under circumstances which might reasonably be interpreted as an attempt to influence them in the conduct of their duties. If Provider is to conduct assessments, Provider may not have been involved in any way with designing the product, process or system to be assessed. If Provider is an agent authorized by [REDACTED] customers, Provider may not permit any crossover or sharing of information between its Personnel who conduct assessments and those who act as agents authorized by [REDACTED] customers. Provider must immediately disclose to [REDACTED] any actual or potential conflicts of interest, including any business relationship and/or any financial interest of a [REDACTED] employee in Provider's business.
- 20.3 Compliance with Laws; Changes in Laws. Provider shall perform the Services in compliance with all applicable Laws and generally accepted accounting principles. Provider will promptly notify [REDACTED] of any change in any Laws, other legal requirements or generally accepted accounting principles of which Provider is aware that may affect its performance of this Agreement. At its expense, Provider shall modify the Services as necessary to remain in compliance with the changes in such Laws, requirements, or principles that impact Provider's industry or business; provided that Provider shall obtain [REDACTED]' express prior written authorization to make any modifications that would materially impact the scope or nature of the Services. [REDACTED] has the right to terminate the Agreement and any SOWs immediately with payment of termination fees (for any unrecovered amortized or unamortized investments made by Provider for providing Services, as specified in an applicable SOW), if [REDACTED] is prohibited by applicable Law from doing business with Provider; provided, however, [REDACTED] will use reasonable efforts to provide notice at least 90 days in advance if permitted by applicable Law and [REDACTED] will use commercially reasonable efforts to permit Provider to continue to provide Services through a workaround solution.
- 20.4 Site Requirements. If any Provider Personnel enter the premises of [REDACTED] or of any [REDACTED] customer to perform any work under an SOW, such Provider Personnel must comply with all applicable site and [REDACTED] policies and take all required or reasonable precautions to assure their safety and the safety of others. If [REDACTED] determines that there has been a breach of these obligations, [REDACTED] may immediately remove such Provider Personnel.
- 20.5 Nondiscrimination. To the extent applicable, the Parties will comply with all applicable laws (such as United States Code of Federal Regulations 41 CFR §§ 60-1.4(a), 60-300.5(a) and 60-741.5(a)) that prohibits discrimination against qualified individuals based on their status as protected veterans or individuals with disabilities, prohibits discrimination against all individuals based on their race, color, religion, sex, sexual orientation, gender identity, or national origin, and requires that covered prime contractors and subcontractors take affirmative action to employ and advance in employment individuals without regard to race, color, religion, sex, sexual orientation, gender identity, national origin, or protected veteran status.
- 20.6 Diversity. [REDACTED] seeks to include Diverse Sellers in awarding bids for goods and services and to identify sellers that will include Diverse Sellers, either directly or indirectly, in servicing the [REDACTED] account. "Diverse Sellers" include businesses that are owned by minorities, women, individuals who identify as lesbian, gay, bisexual, transgender, or otherwise as non-heterosexual or non-cisgender, individuals with disabilities, veterans, as well as those categorized as small businesses. Diverse Sellers must be certified by a national or regional organization that validates diversity status. To support [REDACTED]' supplier diversity goal, Provider will provide information about its supplier diversity program and good faith efforts to utilize diverse suppliers or subcontractors in its business and will (if applicable) document the good faith efforts made on a regular basis (e.g., quarterly) to increase support of Diverse Sellers.

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The requirements of this clause do not apply if and to the extent not permitted by applicable Law.

- 20.7 Code of Conduct. Provider must comply with the [REDACTED] Supplier Code of Conduct, available at [Supplier Portal | \[REDACTED\]](#).

21. GOVERNING LAW AND DISPUTE RESOLUTION

- 21.1 Governing Law. All questions concerning the validity, interpretation, performance, termination, breach or threatened breach of this Agreement shall be governed by, and decided in accordance with, the statutory and common law of Illinois (excluding principles relating to the conflicts of law) and applicable U.S. federal Laws.

21.2 Arbitration.

- (a) All disputes, claims, controversies, questions, or differences related to or arising out of this Agreement will be finally settled by confidential arbitration (except for the limited court remedies provided below). The arbitration will be conducted in English before a single arbitrator agreed to by both parties (or if the parties cannot so agree, an arbitrator appointed by the applicable administrator), in accordance with the then-current rules and procedures of the applicable administrator. The arbitration will be administered in Chicago, Illinois by the American Arbitration Association.
- (b) The arbitrator does not have authority to modify this Agreement and must apply the above governing law. The arbitrator's decision will be the binding and final remedy for any dispute between the Parties arising out of this Agreement. However, a Party may seek from a court of competent jurisdiction: judgement on an arbitration award, provisional remedies in aid of arbitration, or injunctive relief to stop a breach or threatened breach of this Agreement.

22. GENERAL PROVISIONS.

- 22.1 Binding Nature and Assignment. This Agreement binds the Parties and their respective successors and permitted assigns. Provider may not assign this Agreement without the prior written consent of [REDACTED]. Any such assignment will be void. [REDACTED] may assign or transfer this Agreement, upon notice to Provider, to a related party or unrelated party pursuant to a sale, merger or other business reorganization of [REDACTED] or any of its operating units. Assignment of this Agreement shall not relieve a Party of its obligations hereunder, unless otherwise agreed by the Parties. Any Change in Control (as defined below) of Provider shall constitute an assignment of this Agreement, for which [REDACTED] prior written consent is required. For purposes of this Agreement, a "**Change in Control**" means a sale of all or substantially all of the assets of Provider, whether in a single transaction or a series of transactions, a merger, consolidation, or any other transaction or arrangement the effect of which is that 50% or more of the total voting power entitled to vote in the election of Provider's board of directors is held by a person or persons other than the shareholders of Provider, who, individually or as a group, held 50% or more of such voting power immediately prior to such event.
- 22.2 Divestiture. From time to time, [REDACTED] may divest lines of business and/or entities. In such cases, for up to twenty-four (24) months after the closing date of such divestiture and as a Change requested by [REDACTED], Provider will provide to the divested line of business and/or entity all the Services which Provider is obligated to provide to [REDACTED] under this Agreement in accordance with the terms of this Agreement. The cumulative charges to provide the Services to [REDACTED] and the divested entity will be equal to the charges that would have been charged without the divestiture, unless Provider provides evidence that provision of such Services require material, net additional cost, effort or resources that cannot be accommodated with the resources ordinarily available for performance of the Services, in which case the Parties will negotiate the additional charges to be paid by [REDACTED] and/or the divested entity to Provider as a result of such Change.
- 22.3 Notices. All notices required or contemplated hereunder shall be given in writing by prepaid certified mail, personal delivery (including express courier service with proof of delivery), or by

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electronic means with proof of delivery (if subsequently confirmed by certified mail or personal delivery). Notice by mail shall be deemed received three (3) days after mailing. Notice by personal delivery shall be effective upon receipt. Electronic notice shall be effective upon receipt of confirmation by certified mail or personal delivery. Any communications between the Parties related to this Agreement must be in English. Notices shall be addressed as follows:

To Provider:	[REDACTED] [REDACTED] [REDACTED] With a copy sent to the attention of: [REDACTED] [REDACTED] [REDACTED] [REDACTED] E-mail to: legalnotice@[REDACTED]
To [REDACTED]:	At the address first written above and a copy by email to: [REDACTED]

- 22.4 Publicity. [REDACTED] may in its discretion make any press announcements or publicize this Agreement or any matters relating to any of the transactions contemplated hereby, without breaching its confidentiality obligations. Except with the written consent of [REDACTED], Provider will not make any press announcements or publicize this Agreement or any matters relating to any of the transactions contemplated hereby or use any [REDACTED] name, abbreviation, symbols, trademark, or other mark in any way whatsoever.
- 22.5 Further Assurances. The Parties shall with reasonable diligence do all things and provide all reasonable assurances as may be required to complete the transactions contemplated by this Agreement, and each Party shall provide such further documents or instruments required by the other Party as may be reasonably necessary or desirable to give effect to this Agreement and to carry out its provisions.
- 22.6 Good Faith. Whenever this Agreement requires or contemplates any action, consent or approval, each Party will act reasonably and in good faith and will not unreasonably withhold or delay such action, consent or approval, unless the Agreement expressly establishes some other standard, such as exercise of a Party's sole discretion.
- 22.7 Independent Contractors. The Parties are independent contractors, and this Agreement shall not be construed to (i) create any other relationship between the Parties, as principal and agent, joint venturers or otherwise or (ii) constitute Provider as a fiduciary with respect to any employee benefit plan or otherwise. No Party is authorized to enter into agreements for or on behalf of the other, collect any obligation due or owed to any other Party, accept service of process for any other Party, or bind any other Party in any manner whatever. In particular, and without limiting the generality of the foregoing, Provider assumes no obligation or responsibility for [REDACTED] business or operations, other than performance of its obligations hereunder. Any Personnel performing Services under this Agreement on behalf of Provider will at all times be under Provider's exclusive direction and control and will not be considered a [REDACTED] employee. Provider and/or its authorized subcontractors will pay all wages, salaries and other amounts due to their Personnel in connection with any SOW and are solely responsible for all obligations respecting their relationship with the Provider or its authorized subcontractors. Provider is solely

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responsible for providing any tools, supplies, or other goods that Provider or its authorized subcontractors may need or choose to use to fulfil an SOW, except as specifically identified in that SOW.

- 22.8 Beneficiaries. No provisions of this Agreement in any way inure to the benefit of any third-party other than [REDACTED] Affiliates.
- 22.9 Contra Proferentum. The Parties acknowledge they have read and understood this Agreement and have had an opportunity to consult with legal counsel or have voluntarily declined to seek legal counsel. Accordingly, the Parties agree that no provision of this Agreement may be construed against any Party on the basis that such Party was a draftsman. The Parties agree to the preparation of this Agreement in English.
- 22.10 Entire Agreement, Amendment, Waiver. This Agreement, including all attached exhibits, schedules, and SOWs (which are incorporated by this reference) constitutes the entire agreement of the Parties, and supersedes any prior or contemporaneous understandings, agreements or representations. No supplement, modification, amendment or waiver of this Agreement shall be binding unless executed in writing by both Parties. Any failure by a Party to insist upon the performance of any provision of this Agreement will not constitute a waiver of any rights under the Agreement or future performance of that provision. No waiver of any of the provisions of this Agreement shall constitute a waiver of any other provision (whether or not similar) nor shall such waiver constitute a continuing waiver unless otherwise expressly provided.
- 22.11 Severability. Any provision in this Agreement which is prohibited or unenforceable in any jurisdiction shall, as to such jurisdiction, be ineffective to the extent of such prohibition or unenforceability without invalidating the remaining provisions or affecting the validity or enforceability of such provisions in any other jurisdiction.
- 22.12 Interpretation. The headings in this Agreement and any exhibits, schedules, and SOWs are solely for convenience and do not govern their interpretation. Any terms used in this Agreement, exhibits, schedules, or an SOW that are not expressly defined have the meanings commonly associated with such terms in the industry. Terms defined in the plural include the singular and vice versa.
- 22.13 Counterparts. This Agreement, including the exhibits, Schedules and SOWs, may be signed in multiple counterparts, electronically signed, or delivered by electronic mail as a scanned document, and the foregoing will be treated in all respects as having the same effect as an original signature. An individual signing for a party has the authority to bind that party.

- SIGNATURE PAGE FOLLOWS -

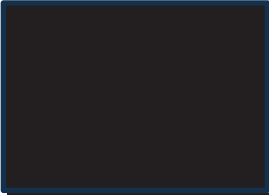
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IN WITNESS WHEREOF the Parties have executed this Agreement as of the Effective Date.



Signed:



Name:

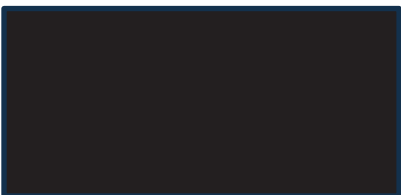
Title:

Date: 1/6/2025





Signed:



Name:

Title:

Date: 12/31/2024

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SCHEDULE A
STATEMENT OF WORK

[SEE SEPARATELY SIGNED DOCUMENT]

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SCHEDULE B
PROVIDER GLOBAL CYBERSECURITY REQUIREMENTS

1. Purpose

- (a) This Provider Global Cybersecurity Requirements document describes the minimum cybersecurity requirements that Provider shall comply with in performing Services for, or otherwise accessing data belonging to, [REDACTED] or its Affiliates under the applicable service agreements, statements of work, or any other related documents (collectively, "**Agreements**"). All capitalized terms not defined herein shall have the meaning set forth in the Agreements.
- (b) An SOW under the MSA may include additional or more stringent cybersecurity requirements depending on the nature of the Services and such additional or more stringent requirements will control in the event of a conflict with this Schedule B.

2. Global Cybersecurity Management Program

- (a) Provider shall have an Information Security Management Program ("**ISMP**") that addresses the overall security program of Provider. The ISMP shall be formally documented, and such records shall be protected, controlled, and retained according to applicable international, federal, state, or internal requirements.
- (b) Provider management support for the ISMP shall be demonstrated through signed acceptance or approval by management.
- (c) [REDACTED] shall have the right to assess the effectiveness of the ISMP by reviewing Provider's information security policy, information security objectives, audit results, analysis of monitored events, corrective and preventive actions and management support at least annually.

3. Access Control

- 3.1 Access Control Policy. Provider shall establish, document, and, upon [REDACTED] request, communicate to [REDACTED], a formal access control policy based on business and security requirements for access. Access control rules shall account for and reflect Provider's policies for information dissemination and authorization, and these rules shall be supported by formal procedures and clearly defined responsibilities. Access control rules and rights for each user or group of users shall be clearly stated. Access controls must be both logical and physical. Users and service providers shall be given a clear statement of the business requirements to be met by access controls. The policy shall be reviewed and updated at least annually.
- 3.2 Review of User Access Rights. All access rights shall be regularly reviewed by management through a formal documented process.
 - (a) User Registration. Provider shall implement and document a user registration and de-registration procedure for granting and revoking access. User account types shall be identified and conditions for group and role membership shall be established.
 - (b) User Identification and Authentication. Provider shall require users to have unique identifiers (user IDs) for their personal use only, and an authentication technique shall be implemented to substantiate the claimed identity of the user. Provider shall provide a list of all user accounts that will have access to [REDACTED] Confidential Information on an as-needed basis. Authentication and authorization mechanisms shall be applied for users and equipment.
 - (c) User Attestation. Provider shall perform, at least bi-annually, an all-user attestation process. The user attestation process is an ongoing review and confirmation of user access that will correlate users with their access to systems and applications, evaluate risk associated with required access and deem user access as risky or inappropriate.

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- (d) **Privilege Management.** Provider shall restrict and control the allocation and use of privileges to information systems and services through a formal authorization process. Privileges shall be allocated to users on a need-to-use basis and on least privileges in line with the access control policy.

3.3 **Secure Log-on Procedures.** Provider shall control user access to operating systems with secure log-on procedures that will display general notice warnings that computers may: (i) only be accessed by authorized accounts; (ii) limit the number of unsuccessful log-on attempts; (iii) enforce recording of unsuccessful attempts; (iv) force time delay before further log-on attempts are allowed; (v) reject any further attempts without specific authorization from an administrator; and (vi) not display the password being entered by hiding the password characters and symbols.

- (a) **Password Management.** Provider shall ensure that passwords are controlled through a formal management process. Users shall be made aware of their responsibilities for maintaining effective access controls and shall be required to follow good security practices in the selection and use of strong passwords.
- (b) **User Authentication for External Connections.** Provider shall develop and implement appropriate authentication methods to control access of remote users to systems containing Confidential Information by requiring the use of password or passphrase and at least one (1) of the following: a cryptographic-based technique, biometric techniques, hardware tokens, software tokens, a challenge/response protocol, or certificate agents.

3.4 **Network Services and Connection Control.** Provider shall specify the networks and network services to which users are authorized to access. Users shall only be provided with access to internal and external network services that they have been specifically authorized to use. The capability to connect to shared networks shall be restricted in line with the access control policy and requirements of the business applications.

- (a) **Equipment Identification in Networks.** Provider shall use automatic equipment identification to authenticate connections from specific locations and equipment to determine whether they are permitted to connect to Provider's network.
- (b) **Remote Diagnostic & Configuration Port Protection.** Provider shall control the physical and logical access to diagnostic and configuration ports. Controls for the access to diagnostic and configuration ports shall include the use of a key lock. Ports, services, and similar applications installed on a computer or network systems, which are not specifically required for business functionality, shall be disabled or removed.
- (c) **Segregation in Networks.** Groups of information services, users, and information systems shall be segregated on networks. Provider shall implement and maintain security gateways which include but are not limited to firewalls and intrusion detection or protection systems which will forward event data and security alerts to a centralized SEIM system for analysis, reporting, and incident response. Provider shall perform firewall configuration and access control list reviews on a regular basis, but not less often than quarterly, to ensure appropriate controls and configurations are applied to limit traffic to only what is required for business operations and such controls and configurations shall be used between internal network, external networks, and any demilitarized zone (DMZ).
- (d) **Network Protection.** Provider shall implement and maintain firewalls and intrusion detection or protection systems which will forward event data and security alerts to a centralized SEIM system for analysis, reporting, and incident response. Provider shall perform firewall configuration and access control list reviews on a regular basis, but not less often than quarterly, to ensure appropriate controls and configurations are applied to limit traffic to only what is required for business operations.

4. Human Resources Security

4.1 **Roles & Responsibilities.** Provider shall define and document the security roles and responsibilities of employees, contractors, and Third Party users in accordance with Provider's

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information security policy. Provider shall ensure that workforce members agree to terms and conditions concerning information security appropriate to the nature and extent of access they will have to Provider's assets associated with information systems and services.

- 4.2 Terms and Conditions of Employment. Provider shall ensure that Provider's Personnel and Third Party users agree to terms and conditions concerning information security appropriate to the nature and extent of access they will have to [REDACTED] assets associated with information systems and services.
- (a) Screening. Provider shall conduct background verification checks on all candidates for employment, contractors, and Third Party users in accordance with relevant laws, regulations and ethics, and proportional to the business requirements, the classification of the information to be accessed, and the perceived risks.
 - (b) Disciplinary Process. A formal sanctions process shall be established and implemented for employees who have violated security policies and procedures.
 - (c) Removal of Access Rights. The access rights of all employees, contractors, and Third Party users to information and information assets shall be removed upon termination of their employment, contract or agreement, or adjusted upon a change of employment. Changes of employment or other workforce arrangement shall be reflected in removal of all access rights that were not approved for the new employment or workforce arrangement.
- 4.3 Information Security Awareness, Education, and Training. Provider shall ensure that all employees, contractors, and Third Party users receive appropriate awareness training and regular updates in Provider's policies and procedures, as relevant to their job function.

5. **Risk Management.**

- 5.1 Risk Management Program. Provider shall create and implement a comprehensive program that manages the risks to information system operations, assets, and [REDACTED] Confidential Information. The risk management program shall develop means through which Provider shall manage and mitigate risks to [REDACTED], including physical and environmental hazards.
- 5.2 Risk Assessments. Provider shall perform risk assessments to identify and quantify information security risks to [REDACTED]. Provider shall account for risks from sources including prior incidents experienced, changes in the environment, and any supervisory guidance. Risk assessments are to be performed at least annually, or when major changes occur in the environment, and the results reviewed annually.

6. **Information Security Policy.** Provider shall develop, publish, and implement information security policy documents. The information security policy shall state the purpose and scope of the policy, communicate management's commitment, describe management's and workforce member's roles and responsibilities, and establish Provider's approach to managing information security. The documents shall be reviewed at planned intervals or if significant changes occur to ensure the policies' adequacy and effectiveness.

7. **Organization of Information Security.**

- 7.1 Confidentiality Agreements. Provider shall ensure that all Personnel who have access to [REDACTED] Confidential Information have agreed to confidentiality or non-disclosure restrictions.
- 7.2 Independent Review of Information Security. Provider shall review at least annually, or when significant changes to the security implementation occur, Provider's approach to managing information security and its control objectives, controls, policies, processes, and procedures. The review shall include an assessment of Provider's adherence to its security plan, address the need for changes to the approach to security considering evolving circumstances, and be carried out by individuals independent of the area under review who have the appropriate skills and experience.

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- 7.3 Information Security Framework. Provider shall follow a leading, industry recognized cyber security framework, e.g., National Institute of Standards and Technology (NIST), or International Organization for Standardization (ISO) 27001. Each year, Provider shall complete [REDACTED] supplier cybersecurity assessment questionnaire. If Provider fails to satisfy [REDACTED] supplier security assessment in [REDACTED] sole reasonable opinion and does not cure any deficiencies within a mutually agreed time-period (not to exceed thirty (30) days) and such deficiencies have an adverse impact on the security of [REDACTED] Data or information systems or material impact on Provider's performance of Services, [REDACTED] may terminate any relevant SOW pursuant to Section 18.3 of the Agreement.
- (a) Regulatory Audits and Examinations. To the extent permitted by law, Provider shall notify [REDACTED] if an international, federal or state regulatory agency requests a review, audit, or other examination of the services or records maintained by Provider on behalf of [REDACTED]. Provider shall fully cooperate with [REDACTED] and any regulator(s) in the event of an audit or review.
- 7.4 Identification of Risks Related to Third Parties. Provider shall identify the risks to its information and information assets from business processes involving Third Parties and then implement appropriate security controls. Provider shall evaluate any information security risks posed by Third Parties prior to establishing a relationship with such Third Party. Once a relationship has been established, Provider shall evaluate the Third Party's information systems on a scheduled ongoing basis.
- (a) Addressing Security in Third Party Agreements. Provider shall ensure that agreements with Third Parties involving accessing, processing, communicating or managing its information or information assets, or adding products or services to information assets cover all relevant security requirements. Provider shall identify and mandate information security controls to specifically address Third Party access to its information assets. Provider shall maintain written agreements with its Third Parties that include an acknowledgement that such Third Parties are responsible for the security of the information.
- 7.5 Evidence of Third-Party Risk Management Program. For Providers that maintain or retain data and provide access to any Third Party, Provider shall provide evidence of a Third Party risk management program. Upon request from [REDACTED], Provider agrees to provide evidence of an assessment of any Third Parties that have access to [REDACTED] data.

8. Compliance.

- 8.1 Identification of Applicable Legislation. Provider shall explicitly define, document, and maintain all relevant statutory, regulatory, and contractual requirements for each information system type. The specific controls and individual responsibilities to meet these requirements shall be similarly defined and documented and then communicated to the user community through a documented security training and awareness program.
- 8.2 Protection of [REDACTED] Records. Provider shall protect important records from loss, destruction, and falsification, in accordance with statutory, regulatory, contractual, and business requirements.
- 8.3 Regulation of Cryptographic Controls. Provider shall use cryptographic controls in compliance with all relevant agreements, laws, and regulations. Provider shall implement strong cryptographic controls for secure file transfers, data at rest, and email communications, etc. which may contain sensitive data. The compliance with all relevant regulations shall be reviewed at minimum on an annual basis.
- 8.4 Information Systems Audit Controls. Provider shall develop audit requirements and activities involving checks on operational systems to minimize the risk of disruptions to business processes. An annual audit planning and scoping process shall exist and consider risk, involvement of technical and business staff, other ongoing projects, and business impacts that may impact the effectiveness of the audit.

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- 8.5 Payment Card Industry Information Security Standard Requirements. To the extent Provider receives, accesses, or transmits cardholder data (e.g., credit or debit card data), Provider acknowledges its responsibility to secure cardholder data and agrees to comply with applicable Payment Card Industry Information Security Standard requirements.

9. Asset Management

- 9.1 Inventory and Acceptable Use of Assets. Provider shall identify and create an inventory of assets and information. All information systems shall be documented and include rules for acceptable use and a method to accurately identify and assign ownership responsibilities to the proper individuals. The rules for acceptable use shall be communicated to all information system users and describe their responsibilities and expected behavior regarding information and information system usage.
- 9.2 Classification Guidelines. Provider shall implement and maintain a process to classify information based on its relevant legal requirements, sensitivity, and its criticality to Provider so that limitations can be put on the data internally and externally. Appropriate procedures for information labeling and handling shall be developed based on the classification system adopted by Provider.
- 9.3 Information Labeling and Handling. Provider shall implement and maintain an appropriate set of procedures for information labeling and handling in accordance with the classification scheme adopted by Provider. Sensitive information shall be physically and/or electronically labeled and handled appropriately regarding the level of risk the information or document contains.

10. Physical and Environmental Security

- 10.1 Physical Security Perimeter. Provider shall protect areas that contain information and information assets with security perimeters (barriers such as walls, card-controlled entry gates, or manned reception desks). These areas shall not be in areas that are unattended or have unrestricted access by the public.
- 10.2 Physical Entry Controls. Provider shall protect secure areas with appropriate entry controls to ensure only authorized Personnel are allowed access. Provider shall maintain visitor access logs for facilities where information systems reside.
- (a) Working in Secure Areas. Provider shall design and apply physical protection and guidelines for working in secure areas. The arrangements for working in secure areas shall include controls for the employees, contractors, and Third Party users.
- (b) Public Access Areas. Provider shall control access points, such as delivery and loading areas, and other points where unauthorized Persons may enter the premises and, if possible, isolate them from information processing facilities to avoid unauthorized access.
- 10.3 Securing Offices, Rooms, and Facilities. Provider shall design and apply physical security for offices, rooms, and facilities to restrict access from the public.
- 10.4 Equipment Siting. Provider shall site or protect equipment to reduce the risks from environmental threats and hazards and opportunities for unauthorized access.
- (a) Supporting Utilities. Provider shall protect equipment from power failures and other disruptions caused by failures in support utilities. Support utilities, such as electricity, water supply, sewage, heating/ventilation, and air conditioning, shall be regularly inspected and tested to ensure their proper functioning and to reduce any risk from their malfunction or failure.
- 10.5 Cabling Security. Provider shall protect power and telecommunications cabling carrying data or supporting information services from interception or damage. Clearly identifiable cable and equipment markings shall be used to minimize handling errors and access to patch panels and cable rooms shall be controlled.

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- 10.6 Equipment Maintenance. Provider shall correctly maintain equipment to ensure its continued availability and integrity by developing, communicating, and reviewing / updating a formal, documented information system maintenance policy and procedures.
- 10.7 Secure Disposal or Re-Use of Equipment. Provider shall check all items of equipment containing storage media to ensure that [REDACTED] Confidential Information and licensed Software has been removed or securely overwritten prior to disposal. Surplus equipment shall be stored securely while not in use. Devices containing [REDACTED] Confidential Information shall be physically destroyed or the information shall be destroyed, deleted, or overwritten using techniques to make the original information non-retrievable rather than using the standard delete or format function. Certificate of destruction is required to be provided by Provider upon deletion of [REDACTED] Confidential Information.
- 10.8 Removal of Property. Provider shall ensure that equipment, information, or Software shall not be taken off site without prior authorization and documentation. Employees, contractors, and Third Party users who have authority to permit off-site removal of assets shall be clearly identified.

11. Communications and Operations Management

- 11.1 Documented Operations Procedures. Provider shall formally document and maintain operating procedures and make them available to all users who need them. The documented procedures shall be prepared for system activities associated with information and communication assets.
- 11.2 Change Management. Provider shall control and archive changes to information assets, systems, networks, and network services. Formal change management responsibilities and procedures shall be in place to ensure satisfactory control of all changes.
- 11.3 Segregation of Duties. Provider shall enforce the separation of duties to reduce opportunities for unauthorized or unintentional modification or misuse of Provider's assets. No single user shall be able to access, modify, or use assets without authorization or detection. Provider shall identify duties that require separation and define information system access authorizations to support separation of duties.
- 11.4 Separation of Development, Test, and Operational Environments. Provider shall separate and control development, test, and operational environments to reduce the risks of unauthorized access or changes to the operational system.
- 11.5 Monitoring and Review of Third-Party Services. Provider shall regularly monitor and review the services, reports, and records provided by Third Parties. Audits shall be carried out regularly to govern and maintain compliance with the service delivery requirements.
- (a) Managing Changes to Third Party Services. Provider shall ensure that Third Parties use appropriate change management procedures for any changes to their provision of services or internal system. Changes to the provision of services, including maintaining and improving existing information security policies, procedures, and controls shall be managed, taking account of the criticality of business systems and processes involved and reassessment of risks.
- 11.6 System Acceptance. Provider shall establish acceptance criteria for new information systems, upgrades, and new versions. Suitable tests of the systems shall be carried out during development and prior to acceptance to maintain security. Management shall ensure that requirements for acceptance of new systems are clearly defined, agreed upon, and documented.
- 11.7 Controls Against Malicious Code. Provider shall implement detection, prevention, and recovery controls to protect against malicious code, and provide appropriate user awareness procedures. Formal policies shall be required, and technologies implemented for the timely installation and upgrade of the protective measures, including the installation and regular, automatic updating of anti-virus or anti-spyware software, including anti-virus definitions, and additional end point security controls should be implemented, such as windows firewall, data loss prevention

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solution, etc., and to be current whenever updates are available. Periodic reviews/scans shall be required of installed Software and the data content of systems to identify and, where possible, remove any unauthorized Software.

- 11.8 Back-up. Provider shall create and regularly test back-up copies of information and Software and store them in a physically secure remote location, at a sufficient distance to make them reasonably immune from damage to data at the primary site. A formal definition of the level of back-up required for each system shall be defined and documented including the scope of data being imaged, frequency of imaging, and duration of retention. This document shall be based on the contractual, legal, regulatory, and business requirements.
- 11.9 Network Controls. Provider shall manage and control networks to protect [REDACTED] from threats and to maintain security for the network, including information in transit. Provider shall implement controls to ensure the security of information in networks and the protection of connected services from unauthorized access. Controls shall be implemented to ensure the availability of network services and information services using the network. Responsibilities and procedures shall be established for the management of equipment on the network, including equipment in user areas.
- 11.10 Management of Removable Media. Provider shall document and implement formal procedures for the management of removable media. Media containing [REDACTED] Confidential Information shall be physically stored and its data encrypted in accordance with Provider's data protection and privacy policy on the use of cryptographic controls until the media is destroyed or sanitized, and commensurate with the confidentiality and integrity requirements for its data classification level.
 - (a) Physical Media in Transit. Provider shall protect media containing [REDACTED] Confidential Information against unauthorized access, misuse, or corruption during transportation beyond Provider's physical boundaries.
- 11.11 Exchange Agreements. Provider shall establish and implement agreements for the exchange of information and Software between Provider and its Third Parties. The agreements shall specify the minimum set of controls on responsibility, procedures, technical standards, and solutions.
- 11.12 Audit Logging. Provider shall produce audit logs recording user activities, exceptions, and information security events and keep them for an agreed period to assist in future investigations and access control monitoring.
- 11.13 Protection of Log Information. Provider shall protect logging systems and log information against tampering and unauthorized access. Access to system audit tools and audit trails shall be limited to those with a job-related need.
- 11.14 Monitoring System Use. Provider shall establish procedures for monitoring use of information processing systems and facilities to check for use and effectiveness of implemented controls. The result of the monitoring activities shall be reviewed periodically. Provider shall comply with all relevant legal requirements applicable to its monitoring activities. Items that shall be monitored include authorized access and unauthorized access attempts.
- 11.15 Clock Synchronization. Provider shall ensure that the clocks of all relevant information processing systems within Provider's environment have been synchronized with an agreed accurate time source to support tracing and reconstitution of activity timelines.
- 12. Information Systems Acquisition, Development and Maintenance.**
 - 12.1 Input Data Validation. Provider shall apply checks to the input of business transactions, standing data, parameter tables, and information into applications and databases when system development is being performed to ensure that data is correct and appropriate.
 - 12.2 Output Data Validation. Provider shall validate data output from an application to ensure that the processing of stored information is correct and appropriate to the circumstances. Output

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validation shall be manually or automatically performed when system development on applications and database is being conducted.

- 12.3 Policy on the Use of Cryptographic Controls. Provider shall develop and implement a policy on the use of cryptographic controls and support it with formal procedures. The cryptographic policy shall be aligned with Provider's data protection and privacy policy and shall address the use of encryption for protection of information transported by mobile or removable media, devices, or across communication lines.
- 12.4 Key Management. Provider shall support the use of cryptographic techniques with the practice of key management. All cryptographic keys shall be protected against modification, loss, and destruction. Secret and private keys shall require protection against unauthorized disclosure, and all cryptographic keys shall be limited to the fewest number of custodians necessary. Equipment used to generate, store, and archive keys shall be physically protected, and encryption keys shall be stored separately from encrypted data.
- 12.5 Protection of System Test Data. Provider shall carefully select, protect and control test data in non-production environments. The use of operational databases containing Confidential Information for non-production purposes shall be avoided. Confidential Information must not be used for testing purposes.
- 12.6 Access Control to Program Source Code. Provider shall restrict access to program source code and associated items to prevent the introduction of unauthorized functionality and avoid unintentional changes.
- 12.7 Outsourced Software Development. Provider shall supervise and monitor outsourced software development. Provider shall have a contract for the outsourced development in place with the Third Party and address licensing arrangements, certification of the quality and accuracy of the work carried out, rights of access for audit of the quality and security functionality of code.
- 12.8 Control of Technical Vulnerabilities and Penetration Testing. Provider shall perform vulnerability scans at intervals consistent to industry best practices to identify potential technical vulnerabilities based on notification of ZERO-day vulnerabilities. Provider shall subscribe to an industry-recognized threat monitoring service. Once a potential technical vulnerability has been identified, Provider shall identify the associated risks and the actions to be taken. Such action shall involve patching of vulnerable systems and/or applying other controls. Provider shall define and establish the roles and responsibilities associated with technical vulnerability management, including vulnerability monitoring, vulnerability risk assessment, patching, asset tracking, and any coordination responsibilities required. Provider shall agree in writing that prior to production the application will undergo a vulnerability and source code analysis. Postproduction, Provider shall perform contractually agreed upon security scans (with the most current signature files) to verify that the system has not been compromised during the testing phase. Provider shall provide written documentation to of the results of the scans and tests along with a mitigation plan. Provider shall agree in writing that these vulnerabilities shall be mitigated pursuant the policies of each entity.

13. Information Security Incident Management

- 13.1 Reporting Information Security Incidents. Provider shall report Security Incidents through appropriate communications channels in accordance with the Agreements. All employees, contractors, and Third Party users shall be made aware of their responsibility to report any Security Incidents as quickly as possible. Formal Security Incidents reporting procedures to support Provider's corporate policy shall be established, together with an incident response and escalation procedure, setting out the action to be taken on receipt of a report of a Security Incident, treating the breach as discovered, and the timelines of reporting and response. Provider standards are specified for the time required for system administrators and other Personnel to report anomalous events to the incident handling team, the mechanisms for such reporting, and the kind of information that should be included in the incident notification.

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- 13.2 Responsibilities and Procedures. Provider shall establish management responsibilities and procedures to ensure a quick, effective, and orderly response to Security Incidents.
- 13.3 Incident Response Plan. Provider shall be able to implement and maintain an existing incident response plan containing milestones and service level agreements for its incident response capability, describing the structure and organization of the incident response capability, providing a high-level approach for how the incident response capability aligns with its overall organizational policies and procedures, and meets the unique requirements of Provider, which relate to mission, size, structure, and functions. The incident response plan will also define reportable incidents and resources needed to effectively maintain and mature an incident response capability, as well as provide metrics for measuring the incident response capability. The plan shall then be approved by designated Provider officials.
- (a) Copies of the incident response plan shall be distributed to incident response personnel and Provider organization elements.
 - (b) Reviews of the incident response plan shall occur annually and include a table-top exercise, documentation, test plan, and results.
 - (c) Revisions to the incident response plan shall be made to address system/organizational changes or problems encountered during plan implementation, execution, or testing.
 - (d) Provider shall communicate incident response plan changes to incident response personnel and organizational elements.
- 13.4 Collection of Evidence. Provider shall collect, retain, and present evidence after a Security Incident. The evidence that is collected, retained, and presented shall be done in accordance with the laws of the relevant jurisdiction(s).

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SCHEDULE C

PERSONAL DATA PROCESSING ADDENDUM

If Provider (referred to as “Supplier” in this Schedule C) accesses, handles, uses, stores, transmits, or otherwise Processes Personal Data as part of its provision of Services for [REDACTED], the following terms apply.

1) Definitions.

- a) **“Controller”** means the entity, alone or jointly with others, that determines the purposes and means of the Processing of Personal Data. For the avoidance of doubt, Controller includes the term “Personal Information Processor” under the PIPL.
- b) **“Data Subject”** means an identified or identifiable natural person.
- c) **“Data Protection Legislation”** means the applicable laws and regulations, as well as any decisions, codes of practice, and guidance issued by a competent institution supervising or regulating data protection, in each case, relating to the Processing of Personal Data and privacy; including where applicable, (i) the General Data Protection Regulation (EU) 2016/679 (“GDPR”) and national data protection laws in the European Union (“EU”) and European Economic Area (“EEA”), and the data protection laws of Switzerland and of the United Kingdom (including the Privacy and Electronic Communications (EC Directive) Regulations 2003, UK Data Protection Act 2018 and the UK GDPR) (collectively “European Data Protection Laws”), (ii) the People’s Republic of China (“PRC”) Personal Information Protection Law, and its implementing regulations and measures (“PIPL”), and/or (iii) the California Consumer Privacy Act (Cal. Civ. Code 1798.100-1798.199) (“CCPA”), in each case, as may be amended from time to time.
- d) **“Personal Data”** means information that identifies, relates to, describes, is reasonably capable of being associated with, or could reasonably be linked, directly or indirectly, with a Data Subject. “Personal Data” includes personal information and personal data (as those terms are defined in the applicable Data Protection Legislation), as context requires.
- e) **“Process”, “Processed” or “Processing”** means any operation or set of operations which is performed on Personal Data or on sets of Personal Data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure or destruction.
- f) **“Processor”** means the entity that Processes Personal Data on behalf of the Controller. For the avoidance of doubt, also known as a party entrusted by a Personal Information Processor under PIPL.

2) Authority.

- a) **Business Contact Information.** [REDACTED] and Supplier may Process the other’s business contact information (“BCI”), which is Personal Data used by a party to contact, identify, or authenticate an individual in a professional or business capacity, including a Data Subject’s name, business email address, physical address, telephone number or similar contact information as independent Controllers. The parties are not entering into a joint Controller relationship. The [REDACTED] Privacy Notice at [REDACTED] additional details on [REDACTED] Processing of BCI. Each of the parties shall comply with its respective obligations under applicable Data Protection Legislation and implement appropriate technical and organizational measures to protect the other party’s BCI.
- b) **Supplier Processing.** [REDACTED] authorizes Supplier to Process the Personal Data during the term of the Agreement as a Processor (on its and its Affiliates behalf) only for the purposes of providing the Services. Schedule 1 describes the purposes of the parties’ Processing, the types or categories of Personal Data involved in the Processing, and the categories of Data Subjects affected by the Processing. The subject matter and duration of the Processing, the nature and purpose of the Processing, and the type of Personal Data and categories of Data Subjects may be more specifically described in a statement of work, or written agreement signed by the parties’

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authorized representatives, which forms an integral part of the Agreement; if this is the case, the more specific description will control over Schedule 1.

3) Supplier Obligations.

- a) Supplier will Process Personal Data solely to the extent required to provide the Services and only on documented instructions from [REDACTED], including the Agreement. Supplier will immediately inform [REDACTED] if, in Supplier's opinion, an instruction infringes the Data Protection Legislation or other data protection provisions.
- b) Supplier will not Process Personal Data for any purpose other than for the business purposes specified in Agreement or otherwise retain, use or disclose Personal Data outside of the direct business relationship between [REDACTED] and Supplier.
- c) Supplier will not permit any Processing of Personal Data (i) subject to European Data Protection Laws outside the European Economic Area, Switzerland, and/or the United Kingdom or (ii) of Chinese residents outside the PRC, in each case, without [REDACTED] prior written consent which may be subject to conditions at [REDACTED] discretion (unless Supplier or its Authorized Sub-Processors are required to transfer the Personal Data to comply with applicable laws and such laws prohibit notice to [REDACTED] on public interest grounds).
- d) Supplier will ensure that any persons authorized to Process the Personal Data: (i) have committed themselves to appropriate contractual confidentiality obligations or are under an appropriate statutory obligation of confidentiality; (ii) Process the Personal Data solely on behalf of and in accordance with the instructions from [REDACTED]; and (iii) are appropriately reliable, qualified, and trained in relation to their Processing of Personal Data.
- e) Supplier will implement (and assist [REDACTED] to implement) technical and organizational measures to ensure a level of security appropriate to the risk presented by Processing the Personal Data, in particular from accidental or unlawful destruction, loss, alteration, unauthorized disclosure of, or access to Personal Data transmitted, stored, or otherwise Processed, and comply with the [REDACTED] Supplier Global Cybersecurity Requirements set forth in Exhibit B to the Agreement.
- f) In the event that Supplier becomes aware of any actual or suspected (i) breach of security leading to the accidental or unlawful destruction, loss, alteration, unauthorized disclosure of, or access to, Personal Data (ii) unauthorized access, acquisition, disclosure, or use of Personal Data, or (iii) any breach of security with respect to Supplier's (including its subcontractors') systems that store or process Personal Data (in each case, a "Security Incident"), Supplier must (x) provide written notice of the Security Incident to [REDACTED] within twenty-four (24) hours; (y) perform an investigation to learn the cause of such Security Incident; and (z) take all steps necessary to remedy the event and prevent reoccurrence. Supplier must cooperate with [REDACTED] in the investigation and remediation efforts following a Security Incident and grant [REDACTED] access to relevant systems and logs related to said Security Incident;
- g) Supplier will provide reasonable assistance to [REDACTED] in: (a) responding to requests for exercising the rights of Data Subjects under applicable Data Protection Legislation, including by deleting Personal Data, correcting Personal Data, disclosing the specific pieces of Personal Data Processed by the Supplier, insofar as this is possible; (b) reporting any Security Incident to any supervisory authority or Data Subjects and documenting any Security Incidents; (c) taking measure to address Security Incidents, including, where appropriate, measures to mitigate its possible adverse effects; (d) conducting privacy and data protection impact assessments (and personal information protection impact assessment, if applicable) of any Processing operations and in consulting with any applicable supervisory authority or appropriate persons accordingly and (e) undertaking any other activities which may be necessary or requested by [REDACTED] for compliance with the Data Protection Legislation.
- h) Supplier will, at the direction of [REDACTED], securely delete or return all Personal Data to [REDACTED] after the termination of services in accordance with the Agreement.

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- 4) **Sub-processing.** Supplier will not engage, use, or permit any third party (including Supplier's Affiliates) to Process Personal Data without the prior written consent of [REDACTED], which may be withheld or subject to conditions at [REDACTED]'s discretion. If [REDACTED] has consented to the use of third parties (subsequently, an "Authorized Sub-Processor") for the Processing of Personal Data: (i) Supplier will provide [REDACTED] with advance notice of any intended changes to any Authorized Sub-Processor, allowing [REDACTED] sufficient opportunity to object and (ii) Supplier must specify the Authorized Sub-Processor's activities and impose the same contractual terms in this Exhibit on that Authorized Sub-Processor. Without prejudice to subsection (i) above, Supplier will remain responsible for all acts or omissions of the Authorized Sub-Processor as if they were its own.
- 5) **Compliance with Data Protection Legislation.**
- a) Supplier will comply with Data Protection Legislation. Supplier will not engage in any act or omission in violation of the terms of the Agreement or Data Protection Legislation that causes [REDACTED] to breach any obligation under Data Protection Legislation. Supplier will notify [REDACTED] without undue delay if, as an experienced provider of the Services, Supplier identifies any potential areas of actual or potential non-compliance with the Data Protection Legislation. Supplier will comply with any additional legal requirements that are necessary to address issues related to compliance with applicable Data Protection Legislation. If Supplier Processes Personal Data in a manner that violates Data Protection Legislation or this Addendum, then [REDACTED] may, at its sole discretion: (i) immediately suspend or terminate Supplier's Processing of [REDACTED] Personal Data or (ii) subject to Section 18.3 of the Agreement, immediately terminate the Agreement and receive a pro rata refund for any products or Services for which [REDACTED] has prepaid.
 - b) Some jurisdictions require that an entity transferring Personal Data to a recipient take measures to ensure that the Personal Data has special protections, including if the law of the recipient's jurisdiction does not protect Personal Data in a manner equivalent to the transferring entity's jurisdiction (a "Data Transfer Mechanism"). The parties will implement and comply with any Data Transfer Mechanisms that may be required by applicable Data Protection Legislation and Supplier will enter into additional terms and conditions as may be necessary to comply with Data Protection Legislation, and Supplier will require any Authorized Sub-Processors to enter into any such Data Transfer Mechanisms that may be required by applicable Data Protection Legislation. If an International Data Transfer Mechanism on which the parties rely is amended, invalidated, or superseded, the parties will work together in good faith to find a suitable alternative.
 - c) To the extent that [REDACTED] transfers to Supplier or permits Supplier to access Personal Data of Data Subjects located in any of the following jurisdictions, the parties agree that by executing this Addendum they also execute the corresponding data transfer agreement ("DTA") for the applicable jurisdiction(s) listed below, which will be incorporated by reference and form an integral part of this Addendum, and be considered duly executed upon entering into this Addendum.
 - i) Brazil: Standard contractual clauses, approved by Resolution CD/ANPD No. 19, of August 23, 2024, available at <https://www.in.gov.br/en/web/dou/-/resolucao-cd/anpd-n-19-de-23-de-agosto-de-2024-580095396> ("Brazil Standard Contractual Clauses") shall apply.
 - ii) EEA: Standard contractual clauses, approved by Commission Implementing Decision (EU) 2021/914 of 4 June 2021, available at https://eur-lex.europa.eu/eli/dec_impl/2021/914/oj?uri=CELEX:32021D0914 ("EEA Standard Contractual Clauses") shall apply. Specifically, Module 2 of the Standard Contractual Clauses applies, except where [REDACTED] acts as a Processor to another Controller, in which case Module 3 applies.
 - iii) Saudi Arabia: The Standard Contractual Clauses For Personal Data Transfer, approved by the Saudi Data & AI Authority, available at <https://dgp.sdaia.gov.sa/wps/portal/pdp/knowledgecenter/details/StandardContractualClauses> ("Saudi Standard Contractual Clauses") shall apply. Specifically, the Second Template clauses applies, except where [REDACTED] acts as a Processor to another Controller, in which case the Third Template clauses applies.

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- iv) Switzerland: The EEA Standard Contractual Clauses apply in the manner specified in Section 5(c)(ii), above, subject to modifications described in Schedule 2 of this Addendum.
- v) Turkey: The Standard Contracts for the Transfer of Personal Data Abroad, approved by the Turkish Personal Data Protection Board, available at <https://www.kvkk.gov.tr/Icerik/7938/Standart-Sozlesmeler-ve-Baglayici-Sirket-Kurallarina-Iliskin-Dokumanlar-Hakkinda-Kamuoyu-Duyurusu> ("Turkish Standard Contracts") shall apply. Specifically, Turkish Standard Contract - 2 applies, except where [REDACTED] acts as a Processor to another Controller, in which case Turkish Standard Contract - 3 applies.
- vi) United Kingdom: The International Data Transfer Addendum to the EU Commission Standard Contractual Clauses issued by the UK Information Commissioner, Version B1.0, in force 21 March 2022, available at <https://ico.org.uk/media/for-organisations/documents/4019539/international-data-transfer-addendum.pdf> ("UK Addendum") shall apply.
- d) The parties agree that they will comply with the provisions of any applicable DTA specified in Section 5(c), above, and, with respect to the elements of the applicable DTA that require the parties' input, Schedules 1 and 2 contain information relevant to the DTA annexes. In case of any conflicts or inconsistency between the provisions of this Addendum and an applicable DTA, the provisions of the applicable DTA shall prevail.
- e) The parties agree that, for Personal Data of Data Subjects in the United Kingdom, Switzerland, or another country specified in Section 5(c), above, they adopt the modifications to the applicable DTA listed in Schedule 1 to adapt the applicable DTA to local law, as applicable. Supplier further agrees that Supplier has conducted a data transfer impact assessment where required by the applicable DTA or applicable Data Protection Legislation, and Supplier agrees to provide [REDACTED] with that documentation upon request and continue to cooperate with [REDACTED] in ensuring compliance with the applicable DTA and relevant legal obligations. If required by applicable Data Protection Legislation or regulatory procedures of any jurisdiction, the Parties will execute or re-execute the applicable DTA as a separate document setting out the proposed transfers of Personal Data in such a manner as may be required.
- 6) **Additional CCPA Compliance.** Without limiting the foregoing, Supplier shall not (i) sell or otherwise make available Personal Data to a third-party for monetary or other valuable consideration, or (ii) share or otherwise make available Personal Data to a third-party for cross-context behavioral advertising, whether or not for monetary or other valuable consideration. In addition, Supplier shall not combine Personal Data that Supplier receives from, or on behalf of, [REDACTED] with personal information that Supplier receives from, or on behalf of, another person or persons, or collects from its own interaction with the Data Subject, provided that the Supplier may combine personal information to perform any business purpose as permitted by CCPA. [REDACTED] may take reasonable and appropriate steps to ensure that Supplier uses Personal Data in a manner consistent with [REDACTED]' obligations under the Data Protection Legislation. Upon notice to Supplier, [REDACTED] may take reasonable and appropriate steps to stop and remediate any unauthorized use of Personal Data. Where applicable, Supplier certifies that it understands its obligations under the CCPA and will comply with them.
- 7) **Information and audit provision.** Supplier will make available to [REDACTED] all information necessary to demonstrate compliance with the obligations set forth in this Exhibit and subject to Section 13.5 of the Agreement, allow for and contribute to audits, including inspections, conducted by [REDACTED] or another auditor mandated by [REDACTED]. [REDACTED] will provide reasonable advance notice (where feasible) of any such audit. [REDACTED] shall perform such audit during regular business hours and in such a manner that does not interfere with normal business activities.

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APPENDIX 1 TO SCHEDULE C**DESCRIPTION OF THE TRANSFER AND PROCESSING**

1. Subject Matter: The subject matter of the Processing and transfer under this Addendum is the Personal Data that Supplier Processes on behalf of [REDACTED] and its Affiliates.
2. Frequency and Duration: Unless otherwise instructed by [REDACTED], Supplier may Process the Personal Data continuously until it is obligated to delete or return that information under Section 3(h) of the Addendum.
3. Purpose: The purpose of Processing and transfer under this Addendum is Supplier's provision of Services to [REDACTED] and its Affiliates pursuant to the Agreement, and [REDACTED] receipt of, and use of such services.
4. Nature of Processing: Supplier will perform Processing solely as needed to provide the Services and to comply with [REDACTED] Processing instructions.
5. Location of Processing: Unless otherwise approved in writing by [REDACTED] or agreed in a SOW, Supplier will Process Personal Data in the same jurisdiction as it collected or received that Personal Data from or on behalf of [REDACTED].
6. Retention Period: As set forth in Section 3(h) of the Addendum.
7. Categories of Data Subjects: The Personal Data Processed by Supplier pertains to individuals encompassed by Supplier's provision of the Services, potentially including [REDACTED] and its Affiliates (i) personnel (such as volunteers, trainees, agents, interns, contractors, and employees, in each case whether past or present and whether full time or part time), (ii) suppliers, and (iii) customers.
8. Categories of Personal Data: The Personal Data Processed by Supplier includes data related to Supplier's provision of the Services, potentially including names, contact information, employment information (such as employment history, education and training, professional skills, work assignments, individual development plans, performance goals and assessments, attendance information, and employment status), nationality, immigration status, financial information (such as bank account and social security numbers), purchase and transaction histories, and device and activity information (such as location information, device preferences, website usage data, metadata and telemetry, devices IDs, diagnostic information, and cookie data).
9. Status of the Parties and Points of Contact:
 - a. Data Exporter: [REDACTED], Controller (or Processor where it acts on behalf of another Controller), Data Privacy Director, privacy@ul.com.
 - b. Data Importer: Supplier Affiliates as listed below, Processor (or sub-Processor where [REDACTED] acts on behalf of another Controller).
 - i. [REDACTED] Global Services Private Limited, Plot 8A, RMZ Centennial, Kundalahalli Main Road, Whitefield, Bangalore, Karnataka, 560048.
 - ii. Business Applications Associates Beijing Limited [REDACTED]
[REDACTED]
[REDACTED]

Contact Name and Title: [REDACTED], Data Protection Officer, [dpo@\[REDACTED\].com](mailto:dpo@[REDACTED].com).

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10. CCPA Permitted Business Purposes: In accordance with the CCPA, Supplier may use Personal Data for the following business purposes: (i) performing Services on behalf of [REDACTED], (ii) helping to ensure the security and integrity of the Services, (iii) debugging the Services, (iv) maintaining the quality and safety of the Services, (v) to the extent permitted by this Addendum, to retain and employ other contractors and service providers as subcontractors, where the subcontractors meet the requirements for a service provider or contractor under the CCPA and (vi) to detect data security incidents and protect against fraudulent or illegal activity.

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Information for International Transfers*Categories of data subjects whose personal data is transferred*

See Schedule 1.

Categories of personal data transferred

See Schedule 1.

Sensitive data transferred (if applicable) and applied restrictions or safeguards that fully take into consideration the nature of the data and the risks involved, such as for instance strict purpose limitation, access restrictions (including access only for staff having followed specialized training), keeping a record of access to the data, restrictions for onward transfers or additional security measures.

See Schedule 1 and Exhibit B.

The frequency of the transfer (e.g. whether the data is transferred on a one-off or continuous basis)

See Schedule 1.

Nature of the processing

See Schedule 1.

Purpose(s) of the data transfer and further processing

See Schedule 1.

The period for which the personal data will be retained, or, if that is not possible, the criteria used to determine that period

See Schedule 1.

For transfers to (sub-) processors, also specify subject matter, nature and duration of the processing

Supplier will engage sub-Processors solely as necessary to provide the Services to [REDACTED] and, as applicable, its [REDACTED] Affiliates, and sub-Processors will carry out any Processing of Personal Data only as necessary for such purposes and as further instructed by [REDACTED] and/or its [REDACTED] Affiliates by virtue of using the Services, including hosting, storage, and other forms of Processing. Such Processing will be no longer than the duration of the Agreement, unless otherwise agreed upon in writing.

For the purposes of the Brazil Standard Contractual Clauses:

- Clause 1: The parties agree that Schedule 1 identifies the parties and their roles.
- Clause 2: The parties agree that Schedule 1 describes the transfer.
- Clause 3: The parties select Option B. The parties agree that subsequent transfers are described in Schedule 1.
- Clause 4: The parties select Option A, except where [REDACTED] acts as a Processor to another Controller, in which case Option B applies. Where Option A applies, the parties designate [REDACTED] as the responsible party under Clause 4.1, subsections (a), (b), and (c). Where Option B applies, the parties agree that the Third-Party Controller is identified in Exhibit A to the Addendum.
- Section III: The parties agree that Schedule 2 describes the security measures applicable to the transfer.

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For the purposes of the EEA Standard Contractual Clauses:

- Clause 7: The parties agree that the optional docking clause will not apply.
- Clause 9(a) (Module 2 and 3, as applicable): The parties select Option 1. The time period is 30 days.
- Clause 11(a): The parties do not select the independent dispute resolution option.
- Clause 17: The parties select Option 1. The parties agree that the governing jurisdiction is Ireland.
- Clause 18: The parties agree that the forum is Ireland.
- Annex I(A): The data exporter is [REDACTED] (defined above) and the data importer is the Supplier (defined above).
- Annex I(B): The parties agree that Schedule 1 describes the transfer.
- Annex I(C): The competent supervisory authority is the Irish Data Protection Commission.
- Annex II: The parties agree that Schedule 2 describes the technical and organizational measures applicable to the transfer.

For the purposes of the Saudi Standard Contractual Clauses:

- Appendix 1: The parties agree that Schedule 1 identifies the parties and their role.
- Appendix 2: The parties agree that Schedule 1 describes the transfer.
- Appendix 3: The parties agree that Schedule 2 describes the security measures applicable to the transfer.

For the purposes of Transfers Relating to Data Subjects in Switzerland:

- With respect to transfers of Personal Data from Switzerland, the EEA Standard Contractual Clauses apply as described above, with the following modifications:
 - Any references to the GDPR, the EU or EU Member State law in the EEA Standard Contractual Clauses shall have the same meaning as the equivalent reference in Swiss data protection laws. To the extent a transfer is also subject to the GDPR, the parties adopt the GDPR standard for all data transfers.
 - Clause 13 and Annex I(C): The competent authorities under Clause 13, and in Annex I(C), are the Swiss Federal Data Protection and Information Commissioner (insofar as the transfer is governed by Swiss data protection laws) and, concurrently (where the transfer is also subject to the GDPR), the EEA member state authority identified above.
 - Clause 17: The parties agree that the governing jurisdiction is Ireland.
 - Clause 18: The parties agree that the forum is Ireland. The parties agree to interpret the EEA Standard Contractual Clauses so that Data Subjects in Switzerland are able to sue for their rights in Switzerland in accordance with Clause 18(c).

For the purposes of the Turkish Standard Contracts:

- As applicable with respect to transfers of Personal Data from Turkey, the parties agree to be bound by the terms of the Turkish Standard Contracts, incorporated by reference into this Addendum, as follows:
 - Clause 8: The parties select Option 1 (Specific Authorisation). The time period is 30 days.
 - Clause 10: The parties do not select the independent dispute resolution option.
 - Clause 16: The parties agree that the data importer shall notify the Authority of the Turkish Standard Contracts.

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- Annex I: The parties agree that Schedule 1, as applicable, describes the transfer, and that the legal basis for the transfer shall be the Turkish Standard Contract.
- Annex II: The parties agree that Schedule 2 describes the technical and organizational measures applicable to the transfer.

For the purposes of the UK Addendum:

- For the purposes of transfers of Personal Data from the United Kingdom, the parties agree to be bound by the terms and conditions of the UK Addendum as follows:
 - Part 1, Table 1: The parties agree that Schedule 1 describes the parties' details and key contacts.
 - Part 1, Table 2: The parties agree that the EEA Standard Contractual Clauses as described above are deemed appended to the UK Addendum, and the modules, clauses, and optional provisions shall apply as described above.
 - Part 1, Table 3: The parties agree that the applicable Annexes are set out in the EEA Standard Contractual Clauses, as described above.
 - Part 1, Table 4: The parties agree that both the Exporter and Importer may end the UK Addendum as set out in Section 19 of the UK Addendum.
 - Part 2: The Parties agree to comply with the Mandatory Clauses of the Addendum, being the template UK International Data Transfer Addendum B.1.0 issued by the UK Information Commissioner and laid before Parliament in accordance with s119A of the Data Protection Act 2018 on 2 February 2022, as it is revised under Section 18 of those Mandatory Clauses.

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APPENDIX 2 TO SCHEDULE C
TECHNICAL AND ORGANIZATIONAL MEASURES

Provider will comply with the Provider Global Cybersecurity Requirements set forth in Schedule B to the Agreement.

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SCHEDULE D

GOVERNANCE MODEL

1. **DEFINITIONS.** Terms used in this Schedule with initial capital letters shall have the respective meanings set forth in this Schedule or, if not defined herein, shall have the respective meanings set forth in the Master Services Agreement or other Schedules to the Master Services Agreement. Unless otherwise specified, references to "Article" or "Section" refer to the applicable Article or Section of this Schedule.
2. **INTRODUCTION**
 - 2.1 **Framework.** This Schedule describes a framework and processes for management of the Parties' working relationships and performance of the Services to achieve the Parties' mutually agreed goals through:
 - (a) Service management by the Parties' respective Contract Executives and their respective subordinates;
 - (b) Oversight by the Management Committee and the Parties' senior-level executives (supplemented by other committees as the Parties may deem advisable from time to time);
 - (c) Participation in joint committees or working groups with other suppliers of related products and services to [REDACTED];
 - (d) Annual review of the Agreement, the Services, Service Levels, and other aspects of the Parties' business relationship; and
 - (e) Dispute resolution through orderly, mutually agreed processes.
 - 2.2 **General.** Notwithstanding any contrary language below, nothing in this Schedule is intended by the Parties to (i) expand or reduce the scope of Provider's performance obligations under the Agreement, or (ii) to alter any Service Level or other performance standard. If and to the extent that there may be any conflict or contradiction between this Schedule and other provisions of the Agreement concerning performance standards or obligations, such other provisions shall supersede any contrary or conflicting provisions of this Schedule.
 - (a) An SOW under the Agreement may include different governance models specific to the nature of the Services, which governance model will apply to the Services described in that SOW.
3. **GOALS.** Both Parties shall discharge their responsibilities under the Agreement in a manner reasonably calculated to advance and achieve the following goals:
 - (a) Efficient, low-cost, timely performance of the Services;
 - (b) Compliance with applicable Laws in accordance with the Agreement;
 - (c) Regular access to Provider's skilled Personnel, knowledge, best practices, and other capabilities and resources;
 - (d) Regular, effective, cordial communication between the Parties at all levels and with Third Parties;
 - (e) Regular review and (when necessary) adjustment of the Parties' relationship to continuously improve performance of the Services and achieve mutually agreed goals; and
 - (f) Achievement of the business goals stated in the Agreement.
4. **ADMINISTRATIVE MATTERS**
 - 4.1 **Notice, Agendas, and Minutes.** One Party or the other, as reasonably determined by the Parties, shall prepare and distribute notices and agendas for all meetings, draft and circulate minutes for review and approval, and [REDACTED] shall maintain complete records of all meetings (including agendas, proposals, action taken, minutes and the like). Records shall be maintained centrally

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and electronically, using a website, shared cloud storage drive, or other similar means equally accessible to designated representatives and other responsible management of both Parties.

- 4.2 Party Action. The Parties shall (i) deal in good faith, and (ii) use reasonable efforts to reach agreement on issues and other matters from time to time considered, but (iii) issues and other matters from time to time considered shall be decided in accordance with applicable terms of the Agreement or by mutual agreement.
- 4.3 Meetings. Meetings shall be scheduled at the intervals specified, as otherwise agreed, and at any reasonable time, upon either Party's request. Meetings shall take place at a location or via means mutually agreed on by the Parties, including via conference telephone call, video conference, or other means that permit all participants to hear one another.
- 4.4 Update Meetings. Upon thirty (30) days' notice from [REDACTED] and no more than two (2) times per Contract Year, Provider will meet with representatives of [REDACTED] at [REDACTED] facilities to (i) explain and discuss how the Services are provided and (ii) provide such training and documentation as [REDACTED] may reasonably require for [REDACTED] to understand and use the Services. Provider will provide [REDACTED] with a reasonable number of copies of appropriate documentation describing and reflecting the means of performing the Services, including revised or updated versions of such documentation as and when available. Any documentation provided by Provider to [REDACTED] pursuant to this Section will be complete and of a quality reasonably satisfactory to [REDACTED].
- 4.5 Appointments. The Parties reserve their respective rights to designate individuals as they may from time to time deem advisable to fill Contract Executive, Management Committee, senior-level executives and other positions designated or referred to by the Agreement and this Schedule, subject to the provisions of the Agreement and this Schedule. Alternates may be designated to attend and act in case of illness, vacation, or other unavoidable absence. Either Party may replace any of the individuals it has designated for any of the foregoing positions at any time, for any reason. Replacements and alternates shall have comparable seniority, experience, and authority.

5. SERVICE MANAGEMENT; OVERSIGHT

- 5.1 Contract Executives. In furtherance of their responsibilities as set out in the Agreement, the Parties' Contract Executives shall perform the following:
 - (a) Responsibilities. Each Contract Executive shall be responsible for day-to-day performance of the Services, including, without limitation: managing the relationship between the Parties; supervising the provision of the Services; creating reports; invoicing, payment, budgets, financial plans, estimates, determining Service Credits, and other financial matters; investigating and resolving incidents (including root cause analyses, if applicable); developing plans, including, as applicable and without limitation, business continuity plans, corrective action plans, and mitigation plans; quality assurance; compliance with applicable policies, procedures, and laws; recommending, considering, and authorizing any modifications to the delivery of the Services; planning; and other matters as the Parties desire.
 - (b) Communication Frequency. The Contract Executives shall meet at least on a regular basis. The Contract Executives may also meet as needed to resolve disputes that relate to performance under the Agreement.
- 5.2 Management Committee. Upon execution of the Agreement, the Parties shall create and provide representation to a committee responsible for overseeing the Contract Executives and the Parties' performance under the Agreement (the "**Management Committee**").
 - (a) Membership. Each Party may designate up to three individuals to be full-time members of the Management Committee, but each Party may also bring additional Personnel to such meetings at the Parties' discretion. Each Party may designate its Contract Executive to also serve as one of its representatives on the Management Committee. [REDACTED] shall additionally appoint one of its designated Management Committee representatives to lead

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the meetings and initiatives of the Management Committee. [REDACTED] may change such designated representative at any time, for any reason.

- (b) **Responsibilities.** The Management Committee shall be responsible for, without limitation: reviewing performance reports; oversight of operations and performance; review of invoices, budgets, trends, and other financial questions; review and approval of initiatives relating to continuous improvement and business impact and progress on projects under implementation; approving plans developed by the Contract Executives or other representatives from either Party; discussing and, if possible, resolving any outstanding disputes escalated by the Contract Executives; participating in annual planning meetings; and other matters as the Parties desire.
- (c) **Communication Frequency.** The Management Committee shall meet at least quarterly to review and discuss Provider's performance of the Services, the operation of the procurement process, and other matters as the Parties desire. The Management Committee may also communicate or meet as needed to resolve disputes escalated by the Contract Executives.

5.3 **Senior-level executives.** At least one senior-level executive from each Party may be assigned to oversee the operation of the Management Committee. Such senior-level executive may be a member of the Management Committee. Further, such senior-level executive may be required to participate in annual review or other meetings, resolve disputes escalated by the Management Committee, or assist in other matters as the Parties desire.

5.4 **Other Committees.** The Parties, acting through their Contract Executives or the Management Committee may from time to time establish other committees or joint working groups as they deem advisable.

6. COORDINATION WITH THIRD PARTIES

6.1 **Contractors.** Provider acknowledges that [REDACTED] does now or may from time to time during the Term of the Agreement engage Third Party contractors to perform services related to the Services that will require cooperation among [REDACTED], Provider and such Third Party contractors to effectively and efficiently serve [REDACTED] and achieve the goals set forth above and contained in the Agreement.

6.2 **Agreements.** Upon [REDACTED]' request, Provider shall negotiate in good faith and agree upon one or more agreements, in form recommended by [REDACTED] and acceptable to [REDACTED] and Provider, concerning: cooperation among [REDACTED] and contractors; participation in joint committees or working groups to coordinate related activities and services; adoption of and adherence to common technical standards, processes, and procedures; planning for related services and activities; disaster recovery planning and testing; compliance with policies, procedures, and Laws, as applicable; protection of all parties' confidential information and intellectual property; resolution of disputes; and other matters as may be mutually agreed by the Parties.

6.3 **Multilateral Committees.** [REDACTED] may from time to time require Provider, acting through a senior-level executive, Contract Executive, and their designees to participate in one or more joint committees or working groups together with representatives of [REDACTED] and other contractors for the purpose of coordinating related activities, planning, technical standards, and other, similar matters that [REDACTED] may deem advisable in order to assure efficient, effective delivery of the Services and related services, and otherwise to achieve the goals listed above, and [REDACTED] other business goals.

7. ANNUAL REVIEW

7.1 **Review.** During the first quarter of every Contract Year, the Management Committee shall meet with a senior-level executive from each Party to undertake a joint review of the Agreement and the Parties' relationship considered as a whole, including, without limitation: service quality, as measured through Service Levels and other appropriate means; financial performance; effectiveness of governance procedures in this Schedule and other provisions of the Agreement;

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extensions, reductions, or adjustments to the scope of the Services; possible adjustments of Service Levels and related Service Credits; possible amendments to the Agreement; anticipated consumption trends, improvements in the Services, changes in Provider's methods, procedures, and solution; and other developments anticipated to affect performance of the Services and the Parties' relationship; and other matters as the Parties desire.

- 7.2 Report. Review by the Management Committee and the senior-level executives shall be based upon a joint report, prepared by the Contract Executives and their designees, which shall summarize the Parties' views concerning the foregoing. Where the Parties differ, their respective views shall be summarized for discussion and further consideration. Neither Party shall be obligated to amend the Agreement, approve any changes, or take any other action because of the foregoing review (unless required by other provisions of the Agreement), but each Party shall consider the other Party's concerns and proposals in good faith.

8. **DISPUTE RESOLUTION.** If a dispute arises between the Parties, the dispute will first be submitted to the Contract Executives from both Parties for resolution. The Contract Executives shall meet to discuss and resolve the dispute. If the Contract Executives from each Party are unable to timely resolve the dispute, then the Contract Executives shall escalate the dispute to the Management Committee for resolution. If the Management Committee is unable to timely resolve an escalated dispute, then the dispute shall be submitted to a senior-level executive within each Party for resolution. If the senior-level executives are unable to resolve the dispute, then either Party may pursue any other remedies available under the Agreement and applicable law.

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SCHEDULE E

CHANGE CONTROL

1. **DEFINITIONS.** Terms used in this Schedule with initial capital letters shall have the respective meanings set forth in this Schedule or, if not defined herein, shall have the respective meanings set forth in the Master Services Agreement or other Schedules to the Master Services Agreement. Unless otherwise specified, references to "Article" or "Section" refer to the applicable Article or Section of this Schedule.

"Change" means a request by either [REDACTED] or Provider to change the scope or performance of the Services under the Agreement and/or a SOW as amended from time to time. Changes may be classified as either a **Procedural Change** or a **Substantial Change**. For the avoidance of doubt:

- increases or decreases in the consumption of resource units described in Exhibit 4 (Pricing and Financial Provisions) resulting in an adjustment to the Charges are not considered Changes and will be handled in accordance with the procedure set forth in the in Exhibit 4 (Pricing and Financial Provisions); and
- any automatic changes to Services Levels under Exhibit 3 (Service Level Methodology) will not be considered Changes

"Change Control" means the procedures for classification, processing, approval, or rejection of all relevant changes, reductions or additions to the Services, and amendments to the Agreement set out in this Schedule E.

"Change Control Procedure" means the process and procedures used to identify and implement, if necessary, any proposed or required Substantial Change to the Agreement or a Statement of Work, in accordance with this Schedule E).

"Change Management" means the processes and procedures for planning, documenting and performing all Procedural Changes pertaining to the Services, including Procedural Changes to individual Service components and coordination of Procedural Changes across all Services.

"Change Request" means a request made in accordance with either the Change Control Procedure or Change Management set forth in this Schedule E of all material details (e.g., timeline, impact on the Services) of the Change and an assessment of the increase or decrease in the Charges associated with the Change using the template set out in E-1 or E-2, attached.

"Charge Review Procedure" has the meaning given in Section 4 below

"Emergency Change" means a Change required by [REDACTED]:

- where there is an immediate risk of material loss or damage or injury to [REDACTED] or Provider; or
- any other circumstance which, in the reasonable opinion of [REDACTED], needs to be dealt with urgently.

"Impact Analysis" has the meaning given in Section 3.2 below.

"Non-chargeable Change" means any of the following Changes for which Provider is not entitled to increase the Charges or otherwise charge [REDACTED]:

- Procedural Changes;
- Changes that are required to add any services, functions, and responsibilities not specifically described in the Agreement but that are described in Sections 3.1(b) and 3.1(c) of the Agreement;

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- Changes required for Provider to carry out its obligations under the Agreement where the associated costs and expenses are already included in the Charges;
- Changes that only impact Provider's solution which are initiated by Provider at its sole discretion, including Changes to the manner in which Provider performs the Services;
- Changes required to remedy a Service Level failure that is not excused as per the terms of the Agreement; or
- General maintenance of Provider assets.

"Procedural Change" means any Change that:

- does not modify, add to or reduce the scope of the Services;
- does not modify the terms of the Agreement; or
- is identified in the Agreement as being subject to Change Management at no additional cost to [REDACTED].

"Procedural Change Note" or **"PCN"** means the form required to request and authorize Procedural Changes requested by [REDACTED] or Provider. The form of PCN is attached hereto as Attachment E-1.

"Substantial Change" means any Change that:

- modifies, adds to or reduces the scope of the Services;
- modifies the Agreement;
- results in other than an insignificant change to the Charges or [REDACTED]'s costs or [REDACTED]'s or Provider's risks, in relation to the Services; or
- is identified in the Agreement as being subject to Change Control.

"Substantial Change Note" or **"SCN"** means the form required to request and authorize Substantial Changes requested by [REDACTED] or Provider. The form of SCN is attached hereto as Attachment E-2.

2. CHANGE REQUEST

Where [REDACTED] is the Party requesting the Change, [REDACTED] will provide Provider with a written request describing the Change. If Provider requests the Change or following receipt of a Change request from [REDACTED], Provider shall provide the Change Request to [REDACTED]. [REDACTED] shall determine the priority of the proposed Change Request. Each Party shall evaluate the feasibility of the proposed Change as soon as reasonably practicable, but in any event within ten (10) business days after receiving the Change Request. The Parties shall work together reasonably and in good faith to provide any additional information necessary for evaluation of the Change Request as soon as reasonably practicable, but in any event within five (5) business days after receiving a request for such information from the other Party. For the avoidance of doubt, Changes resulting from baselining set forth in Exhibit 3 (Service Levels) shall be addressed in accordance with the procedure set forth in Exhibit 3 (Service Levels).

3. CHANGE CLASSIFICATION

Changes may be initially classified by the Party requesting a Change as either:

- (i) a Procedural Change, in which case the Change Management procedure set out in Section 4 below applies; or
- (ii) a Substantial Change, in which case the Change Control procedure set out in Section 5 below applies.

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Unless it is already classified under this Agreement, no Change will be considered a Procedural Change or a Substantial Change until the Parties agree as to its classification.

For the avoidance of doubt, it is possible that a proposed Procedural Change may be reclassified by Parties as a Substantial Change (e.g., where the implementation of such Procedural Change necessitates a change to the Charges). In such case, the provisions applicable to Substantial Changes in this Exhibit shall apply to such a Change.

3.1 Change Management Procedure (For Procedural Changes)

(a) Generally

In performing the Services, Provider will conform at all times with [REDACTED]' applicable change management procedures. To the extent that [REDACTED] change management procedures do not address a particular Procedural Change (or any systems or processes affected by such Change), the applicable change management procedure used by Provider, as agreed by [REDACTED], in performing similar services for its other customers or itself will apply.

(b) Procedural Change Notes

To the extent required by the applicable change management procedures, Provider will submit a PCN for [REDACTED] review and approval prior to implementation of a Procedural Change. Provider shall record, track the progress, and report the status of all PCNs as part of a contract management report that Provider will provide monthly to [REDACTED].

(c) Implementation of Procedural Changes

Upon agreement by both [REDACTED] and Provider, the Procedural Change shall be implemented in accordance with the agreed upon timeframe and parameters.

3.2 Change Control Procedure (for Substantial changes)

(a) Requests for Substantial Change

Either Party may issue an appropriate written SCN to the other, specifying in detail the proposed Substantial Change, in accordance with the procedures set forth below. Except with respect to an Emergency Change, all SCNs must be executed by both Parties before work on the Substantial Change is authorized.

(b) Procedure

Part B of the SCN will be completed by Provider regardless of who initiates the Change Request. For each SCN, Provider shall:

- (i) assess the SCN and complete Part B of the SCN form. In completing Part B of the SCN form, at a minimum Provider will propose:
 - (A) a description of the Substantial Change;
 - (B) a list of deliverables required for implementing the Substantial Change;
 - (C) a timetable for implementing the Substantial Change;
 - (D) any relevant acceptance criteria and details of how the Substantial Change shall be subjected to acceptance testing;
 - (E) the information that is required by Section 4 below for the Charge Review Procedure;
 - (F) an assessment of the added value of a proposed Substantial Change to [REDACTED] for Provider-initiated Substantial Changes; and
 - (G) amendments to the Agreement, as required.
- (ii) Agree with [REDACTED] upon an appropriate and reasonable timetable for the completion of its obligations.

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The Parties shall agree upon (and document in the applicable SCN) an appropriate and reasonable timetable for the completion of the Substantial Change.

(c) Impact Analysis

Within thirty (30) days from the time of either Party's submission of an SCN, Provider will perform and submit to [REDACTED] a written analysis of the effects and impacts of the proposed Substantial Change (an "Impact Analysis") for [REDACTED]' consideration. Provider will ensure that each Impact Analysis:

- (i) will consider the material effect of the applicable Substantial Change(s) on any other existing Services provided under the Agreement, and
- (ii) will consider the effect on other applicable services provided by [REDACTED] or a third party. If the proposed Substantial Change has no such impact, Provider will indicate "no impact" and provide a brief explanation of such on the applicable Impact Analysis.

4. CHARGE REVIEW PROCEDURE

Except for those Substantial Changes that are Non-chargeable Changes, each Substantial Change shall be assessed to establish whether it involves an increase or reduction in the Charges (as applicable) (the "Charge Review").

Where Provider requests an increase in the Charges due to a Substantial Change, the following will be provided with the SCN to justify the basis of the increase:

- (a) an analysis of the reasons why Provider believes its costs will be impacted by the Substantial Change, together with any applicable supporting documentation;
- (b) where applicable, reasonable evidence that Provider is performing efficiently and that it has reviewed any alternatives to accommodate the requested Substantial Change without adjusting or increasing the Charges (including utilization of existing resources and any adverse impact of such use on the Services and Service Levels); and
- (c) details of proposed one-off charges and/or changes to the Charges based upon the above, and any data and charging assumptions reasonably required by [REDACTED] to verify such proposed changes.

Where there is a decrease in the Charges due to a Substantial Change, Provider shall detail the reduction, providing reasonable supporting documentation sufficient for [REDACTED] to assess the proposed decrease.

The Charge Review Procedure is the only process by which Provider may increase the Charges under the Agreement or otherwise charge [REDACTED] due to a Substantial Change, except for the following:

- (a) where a Change would result in New Services;
- (b) Changes to the consumption of resource units as described in Exhibit 4 (Charges); and
- (c) any increase in Charges resulting from provisions of Exhibit 4 (Charges) that provide for changes in Charges.

4.1 Review and Approval of Substantial Changes

Before returning a completed SCN to [REDACTED], Provider shall review the proposed Substantial Change internally and obtain all necessary internal approvals.

[REDACTED] will review the completed SCN and either:

- (a) accept the SCN;
- (b) reject the SCN;
- (c) request an amendment to the SCN (providing reasonable details of the items in the notification that [REDACTED] rejects or queries); or

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- (d) request further information from Provider as may be reasonably required by [REDACTED] to review the SCN.

At [REDACTED]' request, Provider will resubmit its proposed SCN with amendments as discussed and agreed between the Parties, in no event later than the thirtieth (30th) day following such request.

For the avoidance of doubt, any one-off charges, on-going separate charges or adjustment to the Charges are subject to the prior written agreement of [REDACTED] and Provider. Such approval shall be evidenced by the signature on Part C of the SCN by the duly authorized representatives of each Party.

[REDACTED] may accept or reject the SCN in whole or in part. Where [REDACTED] requires Provider to resubmit the SCN, [REDACTED] will provide reasonable detail to Provider of the parts of the SCN that do not meet with its approval, setting out reasons for such rejection. The Parties will negotiate in good faith on those matters in the SCN that do not meet with [REDACTED]' approval.

Except with respect to an Emergency Change, if Provider proceeds with a Substantial Change without [REDACTED]' prior written authorization, such Substantial Change will be entirely at Provider's cost and risk (and may require Provider to undo the Substantial Change at Provider's expense).

4.2 Implementation of Substantial Changes

Upon agreement by both [REDACTED] and Provider and signature of Part C of the applicable SCN by the Parties, the Substantial Change shall be implemented in accordance with the timeframe and parameters outlined in the SCN; provided, however, no Change amending any terms and conditions to the Agreement will be effective unless such amendment is executed in accordance with Section 21.10 of the Agreement.

If the Substantial Change is effected in accordance with this Schedule E, appropriate adjustments shall be made to the Charges, Services, Service Levels, and Agreement.

Provider shall record, track the progress, and report the status of all SCNs as part of a contract management report that Provider will provide monthly to [REDACTED].

4.3 Emergency Changes

[REDACTED] may require Provider to implement an Emergency Change without application of some or all (as specified by [REDACTED]) of the processes and procedures set out in this Schedule E.

Provider shall notify [REDACTED] as soon as practicable after implementation of an Emergency Change/

Subject to Provider demonstrating to [REDACTED] that any costs incurred to implement an Emergency Change were reasonable under the circumstances, the Parties shall retrospectively apply the Charge Review Procedure (where appropriate).

5. **OUTCOME OF CHANGE REQUEST EVALUATION**

- 5.1 Changes that can be accommodated with the tools, technologies and/or Personnel resources ("Resources") then-currently ordinarily available for the performance of the Services will not result in any increase to the Charges. Charges for Changes that require net additional Resources will be determined by the Parties.
- 5.2 If the Change Request is approved by both Parties, the Parties shall mutually agree on the effective date of the Change and document the Change and its effective date as an amendment to the Agreement and/or the applicable SOW. If the Parties do not approve the Change Request, the requesting Party may escalate any such failure to approve the Change Request for resolution via the dispute resolution procedure set forth in Schedule D (Governance Model); provided, however, that Provider will proceed with any Change as directed by [REDACTED] while the Parties seek to resolve such disagreement if the Change is required to respond to an emergency or comply with applicable Law. In addition, for any Change submitted by [REDACTED] for which the amount in dispute is \$100,000 or less, Provider shall proceed pending the resolution of the Parties' disagreement, subject to [REDACTED] providing a written approval for proceeding with such Change that is subject to the dispute.
- 5.3 All services added or modified by a Change Request shall be "Services" under the Agreement, and the performance of the Change Request shall in all respects be governed by the Agreement.

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Except as expressly provided herein or in the Agreement, no part of the discussions or interchanges between the Parties shall obligate the Parties to approve any proposed change or shall constitute an amendment or waiver of the Agreement unless and until reflected in an approved Change Request and adopted in accordance with this Change Control Procedure.

- 5.4 Provider will not be required to comply with any Change Request if its compliance will violate applicable Law. Provider will immediately inform [REDACTED] if it determines it cannot implement the Change mandated by [REDACTED] and comply with applicable Law.
- 5.5 Provider will not invoice, and [REDACTED] will not be liable for, any Change or work performed by Provider in connection with such Change, unless a Change has been approved in accordance with this Change Control schedule. The Charges for such work will be specified in the applicable Change Request.

6. CHANGE REQUEST LOG AND REPORTS.

Provider shall: (i) during the Term, always maintain a log of all Changes, to which [REDACTED] will have access; and (ii) provide monthly reporting on status and target dates for open Change Requests.

The Change Request log shall include the following details:

- (a) control number and date of the Change Request;
- (b) name of the Party requesting the Change;
- (c) brief description of the Change Request;
- (d) current status of the Change Request; and
- (e) date of the Change Request, as applicable.

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Attachment E-1
FORM OF PROCEDURAL CHANGE NOTE (PCN)

PCN No. _____

This PCN is made and entered by and between [redacted] and Provider pursuant to Schedule E (Change Control) of the Master Services Agreement dated [insert date]. All terms and phrases not otherwise defined herein shall have the meaning set forth in Exhibit 1 (Definitions).

Submitted by:
Date:
Brief Description of Procedural Change Requested:
Proposed Implementation Schedule:
Changes to the Policy and Procedures Manual:

Received by:
Date:
Comments Regarding Request, Schedule (attach additional pages if necessary):
Approved: __ Not Approved: __
Additional Information Required:

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Attachment E-2 FORM OF SUBSTANTIAL CHANGE NOTE (SCN)

SCN No. _____

This SCN is made and entered by and between [REDACTED] and Provider pursuant to Schedule E (Change Control Procedures) to the Master Services Agreement dated **[insert date]**. All terms and phrases not otherwise defined herein shall have the meaning set forth in Exhibit 1 (Definitions).

Part A:

Submitted by:
Date:
Detailed Description of Substantial Change Requested:

Part B: (To be completed by Provider.)

Timetable for Implementing the Substantial Change, and Project Plan for Achieving Completion:
Impact Analysis (as more fully described in Section 3.2 (c) of Schedule E NOTE: Provider must obtain [REDACTED]'s approval before proceeding with the Impact Analysis. (See Part C.)
The Information Required by Section 3.2(b) of Schedule E for the Charge Review Procedure:
Assessment of the Added Value of a Proposed Substantial Change to [REDACTED] (for Provider-initiated Substantial Changes):
List of Deliverables Required for Implementing the Substantial Change:
Relevant Acceptance Criteria and Details of Acceptance Testing:
Proposed Amendments to the Agreement as Required (list specific sections):
Amendments to Exhibit 2 (Statement of Work):
Amendments to Exhibit 3 (Service Levels):

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Amendments to Exhibit 4 (Charges):

Amendments to Other Exhibits or Attachments to the Agreement:

Changes to the Policies and Procedures Manual:

Part C:

[REDACTED]'s Authorization for Provider to Proceed with Impact Analysis:

Approved: ____ Not Approved: ____

Additional Information Required:

[REDACTED]'s Approval for Provider to Proceed with the Substantial Change As Described Above:

Approved: ____ Not Approved: ____

By: _____

Name: _____

Title: _____

Date: _____

NOTE: CHANGES TO PROVIDER LOCATIONS PROVIDING SERVICES, OR [REDACTED]
LOCATIONS RECEIVING SERVICES REQUIRE REVIEW OF TAX IMPLICATIONS.

NOTE: REQUIRES [REDACTED] LEGAL APPROVAL.

By: _____

Name: _____

Requires Contract Amendment: Yes ____

No ____

Additional Information Required:

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Provider's Approval to Proceed with the Substantial Change As Described Above:

Approved: ____ Not Approved: ____

By: _____

Name: _____

Title: _____

Date: _____

NOTE: REQUIRES PROVIDER LEGAL APPROVAL.

Requires Contract Amendment: Yes ____ No ____

Additional Information Required:

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SCHEDULE F

PERSONNEL HIRING

1. China Personnel Hiring

- 1.1 In connection with the Services, [REDACTED] desires to terminate certain employees ("**Target China Personnel**") of [REDACTED] Affiliate, [REDACTED] (China) Holding Company - Guangzhou Branch II and/or other Affiliates of [REDACTED], as applicable (the "[REDACTED] **Entity**"), and Provider desires to hire such Target China Personnel of the [REDACTED] Entity, subject to the willingness of the [REDACTED] Entity Personnel to be hired by the Provider, so that they will become Provider Personnel, in accordance with the terms of the Agreement, including this Schedule F.
- 1.2 [REDACTED] Entity shall fulfill its obligations towards the Target China Personnel in accordance with applicable Laws and the provisions of the respective Target China Personnel employment contract with [REDACTED] Entity.
- 1.3 Provider agrees as follows:
 - 1.3.1 Provider China Entity will hire the Target China Personnel and acknowledges that the precondition for accepting the Target China Personnel is that the Target China Personnel agree to terminate their employment relationships and employment contracts with [REDACTED] Entity through consultation in accordance with applicable Chinese Law and be hired by Provider China Entity as its employees.
 - 1.3.2 Regarding the Target China Personnel to be hired by Provider China Entity, Provider China Entity will sign a separate employment contract with each Target China Personnel to establish an employment relationship in accordance with applicable Chinese Law, without setting a probationary period ("**New Contract**"). The term of the New Contract will be two (2) years for the first fixed-term contract and three (3) years for the second fixed-term contract. [REDACTED] and Provider shall mutually agree on the date when Provider China Entity will offer employment to the Target China Personnel, which shall be prior to the Service Commencement Date. The date on which the New Contract is executed is referred to as the "**China Hire Date**". Those Target China Personnel who sign the New Contract and join Provider China Entity on the China Hire Date, shall be referred to as "**Hired China Employees**".
 - 1.3.3 Regarding Hired China Employees:
 - 1.3.3.1 The Hired China Employee's work location will be Provider China Entity's business address in Guangzhou located at Unit 1301-1308, 13th Floor, Lizhan Building, No. 33, Jiefang South Road, Yuxiu District, Guangzhou, China.
 - 1.3.3.2 The job responsibilities, working hours, and applicable working hours scheme of each Hired China Employee shall remain the same as during his/her employment with [REDACTED] Entity. The title of Hired China Employees shall be as per Provider China Entity's organizational titles at similar grade/job levels;
 - 1.3.3.3 The standards and contents of all salaries and benefits (including but not limited to wages, leave entitlements, leave pay, annual leave, year-end bonus, social insurance, and housing fund) for each Hired China Employee shall remain the same as during their employment with UL

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China Entity, however the salary structure of the Hired China Employee will be in accordance with Provider China's Entity's salary structure, which shall not be lesser than what the Target China Personnel received while being employed with [REDACTED] Entity;

1.3.3.4. Commencing from China Hire Date, Provider China Entity will pay salaries and other benefits to the Hired China Employees on time and in full, and withhold and contribute social insurance and housing fund as well as pay individual income tax on their behalf.

- 1.4 [REDACTED] (and/or [REDACTED] Entity) will indemnify, defend and hold Provider and its Affiliates, and their respective officers, directors and employees harmless from and against any Claim to the extent arising from or relating to [REDACTED] and/or [REDACTED] Entity's non-compliance with applicable Laws.
- 1.5 Provider (and/or Provider China Entity) will indemnify, defend and hold [REDACTED] and its Affiliates harmless from and against any Claim to the extent arising from or relating to Provider and/or Provider China Entity's non-compliance with applicable Laws.
- 1.6 [REDACTED] Entity hereby acknowledges and confirms that to the extent there are any non-compete restrictions or conditions under the individual employment contracts of the Target China Personnel with [REDACTED] Entity, such restrictions or conditions are hereby waived by [REDACTED] Entity only to the extent it allows the Target China Personnel to be employed by Provider China Entity. Other restrictions related to confidentiality, intellectual property protection and/ or non-solicitation shall continue to apply on Target China Personnel.
- 1.7 [REDACTED], on timely basis, will inform Provider about the status and the timeline of the termination of employment of the Target China Personnel and the details of the Target China Personnel who have been terminated by [REDACTED] Entity.

2. India Personnel – Provider's Right to Hire

- 2.1 Provider's Affiliate, [REDACTED] Global Services Private Limited (and/or other Affiliate of Provider that Provider identifies in writing) ("**Provider India Entity**"), shall make an offer of employment, and [REDACTED] will collaborate in good faith with Provider to cause [REDACTED] Affiliate, [REDACTED] India Private Limited and/or other Affiliate of [REDACTED] that [REDACTED] identifies in writing, as applicable (the "[REDACTED] **India Entity**") to facilitate the Provider India Entity in making an offer of employment to up to 36 [REDACTED] India Entity Personnel (or such other number of Personnel as mutually agreed by the Parties) ("**Target India Personnel**").
- 2.2 [REDACTED] and Provider shall mutually agree on the employment commencement date of the Target India Personnel with the Provider India Entity, which shall be prior to the Service Commencement Date (the "**India Hire Date**").
- 2.3 Those Target India Personnel who accept the offer, sign the Provider India Entity's employment contract, resign from the employment with [REDACTED] India Entity and join the Provider India Entity on the India Hire Date, shall be referred to as "**Hired India Employees**". The Target Hired India Personnel Employees who do not accept the offer, do not sign the Provider India Entity's employment contract, or do not join the Provider India Entity on the India Hire Date, shall be referred to as "**Non-Hired India Employees**".
- 2.4 [REDACTED] and Provider agrees to complete the following actions prior to India Hire Dates:
 - 2.4.1 Obligations of [REDACTED] India Entity:

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- 2.4.1.1 [REDACTED] India Entity shall release the Hired India Personnel from employment with [REDACTED] India Entity in compliance with applicable Laws before the India Hire Date. [REDACTED] India Entity shall complete all formalities necessary for each Hired India Employees in order to allow such Hired India Employees to be hired by the Provider India Entity on the India Hire Date including providing the Provider India Entity the human resources file, including compensation information for each Hired India Personnel prior to the India Hire Date.
- 2.4.1.2 [REDACTED] India Entity shall remain obligated and liable for all statutory and contractual obligations of the Target India Personnel (including obligations for withholding of applicable taxes and any other statutory contributions required under Applicable Law, gratuity payments and leave accruals) up to the India Hire Date.
- 2.4.1.3 [REDACTED] India Entity hereby acknowledges and confirms that to the extent there are any non-compete restrictions or conditions under the individual employment contracts of the Hired India Personnel with [REDACTED] India Entity, such restrictions or conditions are hereby waived by [REDACTED] India Entity only to the extent it allows the Hired India Employees to be employed by Provider India Entity. Other restrictions related to confidentiality, intellectual property protection and/ or non-solicitation shall continue to apply on Hired India Employees.
- 2.4.1.4 [REDACTED], on timely basis, will inform Provider about the release of the Target India Personnel from [REDACTED] India Entity's employment, and the timelines related to [REDACTED] India Entity's payment of dues to the Target India Personnel.

2.4.2 Obligations of the Provider:

- 2.4.2.1 Provider India Entity shall issue to each Target India Personnel on such date prior to the India Hire Date as mutually agreed between the Parties, a written employment offer to establish an employment relationship in accordance with applicable Indian Law, without setting a probationary period. The India Hire Date shall be on the date immediately following the termination of the Hired India Employees' employment with [REDACTED] India Entity.
- 2.4.2.2 Provider India Entity shall be responsible for all statutory and contractual obligations (including obligations for withholding of applicable taxes and any other statutory contributions required under Applicable Law) towards the Hired India Employees from the India Hire Date. The Provider India Entity shall assume all employment obligations for the Hired India Employees with respect to their employment with the Provider.
- 2.4.2.3 The Hired India Employee's work location will be Provider India Entity's business address in Plot 8A, RMZ Centennial, Kundalahalli Main Road, Whitefield, Bangalore, Karnataka, 560048 India.
- 2.4.2.4 The Provider shall pay the Hired India Employees at no lesser salary (in aggregate) as [REDACTED] India Entity paid the Target India Personnel immediately preceding the India Hire Date and shall offer employment terms on no less favorable than the terms offered by [REDACTED] India Entity immediately preceding the India Hire Date.

- 2.5 The parties agree that no Relevant Transfers are contemplated in India. This includes any deemed transfer under Indian labor laws, such as the Industrial Disputes Act, 1947, Payment of Gratuity Act, 1972 or any other applicable Indian laws concerning and/or involving employment transfers. Neither this Agreement, nor the provision of Services by Provider, shall result in any automatic transfer of employment or rights related to employment, from UL

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Solutions to Provider or any of their Affiliate(s). If any Relevant Transfer of [REDACTED] India Entity employees is deemed to take effect under applicable Laws in connection with this Agreement, the terms of this Schedule F shall apply in that case. "**Relevant Transfer**" means a transfer for the purposes of any applicable Indian Laws relating to the transfer of employees that may apply in India.

- 2.6 [REDACTED] (and/or [REDACTED] India Entity) will indemnify, defend and hold Provider and its Affiliates, and their respective officers, directors and employees harmless from and against any Claim to the extent arising from or relating to: (i) [REDACTED] employment of the Target India Personnel prior to the India Hire Date, including, without limitation, Claims related to [REDACTED] non-compliance with applicable Laws; (ii) employment of the Non-Hired India Employees, including without limitation, Claims related to [REDACTED] non-compliance with applicable Laws; or (iii) [REDACTED] breach of its obligations set forth in Section 2.4.1.
- 2.7 Provider (and/or Provider India Entity) will indemnify, defend and hold [REDACTED] and its Affiliates, and their respective officers, directors and employees harmless from and against any Claim to the extent arising from or relating to: (i) Provider and/or Provider India Entity's employment of the Hired India Employees after the India Hire Date, including, without limitation, Claims related to Provider and/or Provider India Entity's non-compliance with applicable Laws; or (ii) Provider and/or Provider India Entity's breach of its obligations set forth in Section 2.4.2.

3. GENERAL

- 3.1 Upon execution of the Agreement, [REDACTED] shall promptly provide all necessary details related to Target China Personnel and Target India Personnel as requested by the Provider, including applicable [REDACTED] policies, severance amounts, contractual obligations (if any) and benefit details (including severance benefits).

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SCHEDULE G

COMPETITORS

As of the Effective Date of the Agreement, the following companies are competitors of :

-
-
-
-
-
-
-
-
-

The entities listed above include each of their affiliates and subsidiaries. may add companies to, or delete companies from, the above list by providing thirty (30) day advance written notice to Provider, in which case this Schedule G shall automatically be amended.

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SCHEDULE H
PROVIDER COMPETITORS



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SCHEDULE I

GUARANTEE

THIS GUARANTEE (this "Guarantee") is entered into as of January 1, 2025, by [REDACTED] having a place of business at 22 Grenville Street, St Helier, Jersey JE4 8PX, Channel Islands ("Guarantor"), for the benefit of [REDACTED] LLC, having a place of business at [REDACTED] ("Party"). As used in this Guarantee, "Party" means either [REDACTED] or Guarantor, as appropriate, and "Parties" means [REDACTED] and Guarantor, collectively.

WHEREAS, [REDACTED] and [REDACTED] Global Services (UK) International Limited ("Provider") are parties to that certain Managed Services Agreement dated as of January 1, 2025, as amended from time to time (the "Agreement");

WHEREAS, Provider is a wholly-owned subsidiary of Guarantor; and

WHEREAS, as a condition to the effectiveness of the Agreement, [REDACTED] has required that Guarantor deliver this Guarantee to [REDACTED] of the obligations of Provider set forth in the Agreement.

NOW, THEREFORE, for valuable consideration, the receipt and adequacy of which are hereby acknowledged, Guarantor hereby agrees as follows:

1. Guarantor hereby absolutely, irrevocably and unconditionally guarantees to [REDACTED], (a) the prompt and full performance and discharge by Provider of all acts and obligations to be performed or observed by Provider pursuant to the Agreement and (b) the prompt and full payment of the present and future financial obligations and financial liabilities of Provider pursuant to the Agreement (clauses (a) and (b) collectively, the "Guaranteed Obligations"), all in accordance with and subject to the terms and conditions of this Guarantee. This Guarantee includes Guaranteed Obligations arising under any modification or amendment to the Agreement and no such modification or amendment will require the consent of Guarantor.
2. If Provider defaults in the prompt and full performance of any Guaranteed Obligation and such default continues past the period set forth under the Agreement for any cure by Provider, subject to Article 4, Guarantor will promptly (a) perform or cause to be performed such Guaranteed Obligation and (b) pay the amounts owed by Provider for which Provider is liable under such Guaranteed Obligation.
3. This Guarantee will be continuing and irrevocable during the Term (including during any Termination Assistance Services) (as such terms are defined in the Agreement) and will survive with respect to those Guaranteed Obligations that survive the expiration or termination of the Agreement. The effectiveness and validity of this Guarantee will in no way be affected, modified or diminished by reason of any change in the relationship between Guarantor and Provider.
4. The liability of Guarantor under this Guarantee will be coextensive with, but not in excess of, the liability of Provider to [REDACTED] under the Agreement, and Guarantor will be entitled, in each instance, to the benefit of all rights, defenses, counterclaims, rights of setoff, recoupment, limitations of liability and other protections to which Provider may be entitled with respect to any such liability.
5. Unless otherwise required by applicable law, [REDACTED] will not be obligated to file any claim relating to the Guaranteed Obligations in the event that Provider becomes subject to any insolvency, bankruptcy, receivership, assignment for the benefit of creditors or reorganization of Provider, or any similar proceedings by or against Provider or the assets of Provider, and the failure of [REDACTED] to so file will not affect Guarantor's obligations hereunder. The liability of Guarantor under this Guarantee will not be released, reduced, impaired or affected by or as a result of any insolvency, bankruptcy, receivership, assignment for the benefit of creditors or reorganization of Provider, or any similar proceedings instituted by or against Provider or the assets of Provider.

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6. This Guarantee is for the benefit of [REDACTED] and its permitted successors and assigns of the Agreement. In the event of any such permitted assignment or transfer by [REDACTED] of its rights and obligations under the Agreement in accordance with the terms and conditions set forth therein, the benefits of this Guarantee may be assigned and transferred with the Agreement. Guarantor may not assign its rights, interest or obligations under this Guarantee without the prior written consent of [REDACTED] except in the case of a reorganization of Guarantor in which all of the assets of Guarantor are acquired by an Affiliate (as defined in the Agreement) of Guarantor. This Guarantee will be binding upon Guarantor, [REDACTED] and their successors and assigns.

7. This Guarantee constitutes the entire agreement of Guarantor and [REDACTED] with respect to the subject matter hereof and supersedes all prior agreements, whether written or oral, with respect to the subject matter contained in this Guarantee. No amendment of this Guarantee will be valid unless in writing and signed by an authorized representative of the Parties (as designated by each entity from time to time).

8. This Guarantee and performance under this Guarantee will be governed by and construed in accordance with the laws of Illinois without regard to its choice of law principles.

9. Provided that Guarantor will have rights no less than those to which Provider will be entitled by law or contract, Guarantor hereby waives presentment, demand, notice of dishonor, protest, notice of any sale of collateral security and all other notices whatsoever, except as expressly set forth in this Guarantee. This Guarantee will not be interpreted to preclude [REDACTED] or Guarantor from seeking or obtaining any equitable, injunctive or similar relief to which it may be entitled.

10. A delay or omission by either Party to exercise any right or power under this Guarantee will not be construed to be a waiver thereof. A waiver by [REDACTED] of any of the Guaranteed Obligations to be performed by Guarantor or any breach thereof will not be construed to be a waiver of any succeeding breach thereof or of any other Guaranteed Obligation specified herein. Except as otherwise expressly provided herein, all remedies provided for in this Guarantee will be cumulative and in addition to and not in lieu of any other remedies available to each Party at law or in equity.

11. Guarantor will not exercise any rights that it may acquire by way of subrogation until all the Guaranteed Obligations have been performed or discharged in full. Subject to the foregoing, upon performance or discharge of all the Guaranteed Obligations, Guarantor will be subrogated to the rights of [REDACTED] against Provider, and [REDACTED] agrees to take, at Guarantor's expense, such steps as Guarantor may reasonably request to implement such subrogation.

12. Each Party will comply with the confidentiality obligations set forth in the Agreement, which are incorporated herein by reference, with respect to any Confidential Information (as defined in the Agreement) of the other Party that is disclosed in connection with this Guarantee.

13. Guarantor represents and warrants that (a) Guarantor is duly incorporated, validly existing and in good standing under the laws of Jersey Channel Islands, (b) Guarantor has all requisite corporate power and authority to execute, deliver and perform its obligations under this Guarantee and the execution, delivery and performance of this Guarantee by Guarantor has been duly authorized by Guarantor and will not conflict with, result in a breach of, or constitute a default under any other agreement to which Guarantor is a party or by which Guarantor is bound, (c) Guarantor is in compliance with all laws applicable to Guarantor's obligations under this Guarantee, and (d) there is no outstanding litigation, arbitrated matter or other dispute to which Guarantor is a party which, if decided unfavorably to Guarantor, would reasonably be expected to have a material adverse effect on Guarantor's ability to fulfill its obligations under this Guarantee.

14. Notices. All notices required or contemplated hereunder shall be given in writing by prepaid certified mail, personal delivery (including express courier service with proof of delivery), or by electronic means with proof of delivery (if subsequently confirmed by certified mail or personal delivery). Notice by mail shall be deemed received three (3) days after mailing. Notice by personal delivery shall be effective

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upon receipt. Electronic notice shall be effective upon receipt of confirmation by certified mail or personal delivery. Any communications between the Parties related to this Agreement must be in English. Notices shall be addressed as follows:

To Guarantor:

Email: legalnotice@.com

With a copy to:

Attn:

To :

At the address first written above and a copy by email to: legal.notices@ul.com.

15. In the event that any provision of this Guarantee conflicts with the law under which this Guarantee is to be construed or if any such provision is held invalid by a competent authority, such provision will be deemed to be restated to reflect as nearly as possible the original intentions of the Parties in accordance with applicable law. The remainder of this Guarantee will remain in full force and effect.

16. This Guarantee may be executed in several counterparts, all of which taken together will constitute one single agreement between the Parties.

IN WITNESS WHEREOF, Guarantor has caused this Guarantee to be executed and delivered by its duly authorized representative, as of the date first set forth above.

By: _____

Name:

Title:

Date:

hereby acknowledges and accepts the terms of this Guarantee.

By: _____

Name:

Title:

Date: